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This instruction implements Air Force Policy Directive (AFPD) 31-1, *Integrated Defense*. It establishes guidance and procedures for arming, carrying of firearms, and the use of force by Department of the Air Force (DAF) personnel performing security and protection, law and order, investigative, or counterintelligence duties; and for personal protection when related to the performance of official duties. This publication applies to all civilian employees and uniformed members of the Regular Air Force, the United States Space Force (USSF), the Air Force Reserve (AFR), the Air National Guard (ANG), those with a contractual obligation to abide by the terms of DAF issuances, and, except where noted otherwise, all civilian employees and uniformed members from other military departments assigned or attached to any DAF unit. The program management guidance in **Chapter 1**, **Chapter 2**, and **Chapter 3** applies to all personnel subjected to this Department of the Air Force Instruction (DAFI), whereas **Chapter 4** is specific to the Security Forces career field. Additionally, this instruction governs actions taken by all personnel subject to this DAFI performing civil support missions (e.g., defense support of civil authorities

or defense support of civilian law enforcement agencies), routine service functions (including antiterrorism and force protection duties), homeland defense missions occurring within United States (US) territory, and law enforcement and security duties at all Department of Defense (DoD) installations and off-installation while conducting security functions. Furthermore, personnel detailed to other US Government Lead Federal Agencies (e.g., US Border Patrol) will operate under common mission-specific rules for the use of force approved by the Secretary of Defense and the Lead Federal Agency. **(T-0)** DoD forces always retain the right of self-defense, in accordance with use of force principles and rules. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, 5 USC § 522a *Records maintained on individuals (Privacy Act of 1974),* and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements must be routed to the Office of Primary Responsibility of this publication for coordination prior to certification and approval. **Note**: **Chapter 4** of this instruction cannot be supplemented. The authorities to waive wing, unit, or delta level requirements in this publication are identified with a tier ("T-0, T-1, T-2, T-3") number following the compliance statement as outlined in Department of the Air Force Manuel (DAFMAN) 90-161, *Publishing Processes and Procedures*. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority, or alternately, to the publication Office of Primary Responsibility (OPR) for non-tiered compliance items. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the DAF. Failure to obey **paragraph 3.1** through **paragraph 3.4** constitutes a violation of Article 92(1), Uniformed Code of Military Justice (UCMJ)—failure to obey lawful order or regulation. Article 92(1) of the UCMJ does not apply to members of the ANG while in Title 32 status (that is, activated for state duty under state command), but ANG members may be subject to an equivalent article under a state military justice code.

(USAFE-AFAFRICA) DAFI 31-117, *Arming and Use of Force*, is supplemented as follows: This supplement implements USAFE-AFAFRICA guidance for the planning and implementation of Arming and Use of Force conducted in the United States European Command (USEUCOM) and United States African Command (USAFRICOM) Areas of Responsibility. This supplement applies to active duty United States Air Force (USAF) units located throughout the USEUCOM and USAFRICOM Areas of Responsibility. It also applies to Air Force (AF) detachments and offices located on Host Nation (HN) sites in theater. This instruction applies to Air Force Reserve Command (AFRC) or Air National Guard (ANG) units under OPCON of COMUSAFE. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See DAFMAN 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with

the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the OPR using DAF Form 847, *Recommendation for Change of Publication*. Route DAF Forms 847 from the field through the appropriate functional chain of command to HQ USAFE-AFAFRICA/A4S, Unit 3276, APO AE 09094-0135 or **USAFEA4.SO.Plans@us.af.mil**. This publication requires the collection and/or maintenance of information protected by the Privacy Act of 1974 authorized by Title 10 U.S.C., Sec 9013, Secretary of the Air Force. This publication may not be supplemented or further implemented/extended.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include establishing reliability standards to perform Security Forces (SF) duties and specifying roles and responsibilities. Additions to **Chapter 4** include: Expanded Squadron Arming Use of Force Monitor responsibilities; inclusion of Force Support Squadron (FSS) Commanders/Directors roles and responsibilities; and use of the SF-86, *Questionnaire for National Security Positions*, for all SF personnel assigned to nuclear and non-nuclear missions every 5 years to maintain security clearance eligibility.

(USAFE-AFAFRICA) This document has been substantially revised and must be completely reviewed. Major changes include establishing reliability standards to perform Security Forces (SF) duties and specifying roles and responsibilities. Additions to **Chapter 2** include: Expanded Squadron Arming Use of Force Monitor responsibilities; inclusion of Force Support Squadron Commanders/Directors roles and responsibilities; and use of the SF-86, Questionnaire for National Security Positions, for all SF personnel.

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Chapter 1

ROLES AND RESPONSIBILITIES

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1.2. Director of Security Forces (AF/A4S) is responsible for establishing and implementing policy on the carrying of firearms and the use of force, and monitoring compliance with the same.

1.3. Directorate of Security Forces, Operations Division (AF/A4SO) is the responsible policy office for Arming and Use of Force (AUoF) guidance.

1.4. Major Command (MAJCOM) or Field Command (FLDCOM) (Space Force SF is governed by AFMC SF) establish command unique programs and policies.

1.4.1. **(Added-USAFE-AFAFRICA)** Limitations on Use of Force from Host Nation and/or international agreements will be sent to USAFE-AFAFRICA/A4S for coordination.

1.4.2. **(Added-USAFE-AFAFRICA)** Once reviewed by USAFE-AFAFRICA/A4S these limitations must be published in the Base Defense Plan or Security and Defense Plan. **(T-2)**

1.5. Air Force Installation and Mission Support Center (AFIMSC), Air Force Security Forces Center (AFSFC), will provide, MAJCOM/DRU/, SF unit commanders with lessons learned products from Use of Force (UoF) incidents/redacted UoF Review Board Reports, implementation of use of force, advice on tools and methods, and research on best practices.

1.6. Installation Commanders will ensure squadron commanders educate and train their personnel on how and when to use appropriate level of force. (T-0)

1.7. Medical Treatment Facility (MTF) Commanders will ensure notification is made to the commander or their designee(s) for personnel who have a medical condition that may impair their ability to bear firearms. (T-1)

1.8. Commanders will evaluate each person's ability to arm (with an arming requirement) in accordance with this instruction annually. (T-2) At a minimum, the evaluation will include recommendations from other military agencies (e.g., medical) with assisting in determining an individual's suitability to bear firearms in the execution of official duties. **(T-3)**

1.9. Applicability. This instruction applies to those outlined in the opening paragraph. This instruction does not apply to:

1.9.1. DAF military personnel engaged in military operations conducted in accordance with rules of engagement. These personnel are subject to the policy in Chairman Joint Chiefs of Staff Instruction 3121.01B, *Standing Rules of Engagement/Standing Rules for the Use of Force for US Forces*.

1.9.2. Arming of National Guard personnel in Title 32, United States Code (U.S.C.), status or in State active-duty status. **Note:** Consistent with federal and state law, Governors and State Adjutants Generals will decide whether to arm state personnel.

1.9.3. Arming of DoD personnel in an overseas location not under the authority or subject to the control of a US military commander. Guidance on arming of DoD personnel not under the authority or subject to the control of a US military commander is provided in DoD Instruction 5210.84, *Security of DoD Personnel at US Missions Abroad*.

1.9.4. Air Force Office of Special Investigations (AFOSI) personnel. AFOSI personnel follow AFOSI manual (AFOSIMAN) 71-113, *Weapons, Arming, Search and Seizure, Apprehension, Arrest, and Use of Force*, regarding arming and the use of force insofar as they do not violate Federal Law or Department of Defense (DoD) guidance.

1.10. General Guidance.

1.10.1. Guidance on government issued firearms storage is provided in Department of Defense Manual (DoDM) 5100.76_DAFMAN 31-101 Volume 2, *Physical Security of Sensitive Conventional Arms, Ammunition, & Explosives*. Firearms will not be stored loaded. **Exception:** AFOSI, Aircrew performing anti-hijack missions, maintenance personnel at Air Force Global Strike Command missile launch facilities, and military personnel involved in actual combat may store loaded firearms. Personnel issued or assigned custody of government-issued firearms at a residence or non-government location will use a firearm locking device (e.g., trigger lock). **(T-2)** The agency that issues the firearm(s) will provide the individual(s) with safety locks, instructions, and training for proper use. **(T-1)**

1.10.2. Personnel will not consume any form of alcohol or use over the counter drugs or prescription medications that impair their ability to handle a firearm while on duty, nor will they do so within 8-hours before duty or firearms training. **(T-1)**

1.10.3. Guidance on the use of standardized weapons handling procedures by personnel is provided in DAFMAN 31-129, *USAF Small Arms and Light Weapons Handling Procedures,* and this publication, when armed with a DAF owned weapon.

1.10.4. Guidance on how units develop and implement firearms safety tailored specifically to force-on-force training and exercises is provided in DAFMAN 31-129.

1.10.5. Use of force does not apply solely to firearms and deadly force confrontations, but all applications of force as in less/non-lethal weapons, active vehicle barriers, use of military working dogs or physical restraint.

1.10.6. SF personnel are not responsible for dispatching, putting down or euthanizing wildlife or apparently rabid or stray domestic pets. For the euthanasia of injured or sick wildlife SF personnel may utilize pre-coordinated plans or agreements with other organizations or agencies such as US Fish and Wildlife Service. If there are no agencies or organizations available to assist, SF units must establish procedures for these situations locally and have them approved by the Installation Commander. **(T-3)** If SF use force, to include discharging a firearm, on wildlife or a domestic pet assessed to be hostile, to protect self or others, this will not ordinarily necessitate a Use of Force Review Board.

1.10.7. **(Added-USAFE-AFAFRICA)** The local Staff Judge Advocate (SJA) should coordinate with the responsible US Embassy and/or USAFE-AFAFRICA/A5I, International Affairs Division, to ensure currency of agreements pertaining to the arming and use of force of US Forces in the host nation. Commanders consult the SJA who will advise on international agreements, host nation, regional and local laws regarding parameters of self-defense. **(T-2)**

1.10.8. **(Added-USAFE-AFAFRICA)** Installations will develop local procedures to ensure personnel are trained to give warning orders in English and the language of the host nation. The DFC must involve the local SJA in coordination and ensure all local arming and use of force policies and directives are legally sufficient. **(T-2)**

1.10.9. **(Added-USAFE-AFAFRICA)** Unless provided for in a bilateral or international agreement, the United States, as a sending State, is obliged under the NATO Status of Forces Agreement (SOFA) and the Partnership for Peace SOFA, Article II, to "respect the law of the receiving State and to abstain from any activity inconsistent with the spirit and intent of the present Agreement." In developing local procedures and policies, commanders should clearly distinguish between military police activities on and off the installation. Article VII, paragraph 10b, of NATO/Partnership for Peace SOFA states that off-base activities of military police are "subject to arrangements with the authorities of the receiving State and in liaison with those authorities." Additionally, regional or state host nation laws may vary on issues such as use of handcuffs, self-defense, and other issues. Therefore, when performing activities off the installation, Installations must have documented coordination with the appropriate host nation authorities. Verbal coordination can be later recorded in writing during exigent circumstances. For all activities, commanders must coordinate local procedures with the SJA or in certain cases, the nearest US Embassy. **(T-2)**

Chapter 2

ARMING FOR OFFICIAL DUTIES

2.1. Overview. Authorizations may be issued to bear firearms openly, concealed, and in overseas locations, subject to host nation laws or agreements. Personnel may not bear privately-owned firearms or ammunition while performing official military duty, except as authorized by the Secretary of the Air Force (SecAF). **(T-0) Note:** This prohibition does not apply to Air National Guard installations that are subject to the jurisdiction and oversight of the Governors or the Adjutant General of the state or territory.

2.1.1. The Arming Authorities for the carry of government-issued firearms on or off DoD property within the United States and its territories for the performance of official duties for personnel other than those assigned to Defense Criminal Investigation Organization (DCIO), counterintelligence, law enforcement, or security duties are:

2.1.1.1. For open carry, an O-4 commander or above in the chain of command or civilian equivalent in the chain of supervision. **(T-0)**

2.1.1.2. For concealed carry: an O-6 commander or above in the chain of command or civilian equivalent in the chain of supervision. **(T-0)**

2.1.2. Arming officials will coordinate between organizations, tenant units, installations, host service components concerning arming authorizations, permissions, and suspensions of personnel as applicable. **(T-0)**

2.1.3. Arming Authority for open or concealed carry of a government-issued firearm on or off DoD property within the United States and its territories by personnel assigned to a DCIO, counterintelligence, law enforcement, or security duties, or who otherwise carry a firearm for duty on a routine basis is the relevant organization's company grade (O-2 or O-3) unit commander or civilian equivalent or above. **(T-0)**

2.1.4. The SecAF is the arming authority for the concealed or open carrying of privately owned firearms (POF) on DoD property in connection with official duties (e.g., threat of harm related to the person's duties or status). **(T-0)** This authorization will be in a maximum of 90-calender day increments and may be renewed for long as the necessitating arming circumstance exists. **(T-0)**

2.1.5. Arming Authorities in Overseas Locations (i.e., outside the United States and its territories). Only Combatant, MAJCOM, and FLDCOM Commanders can authorize personnel to bear and use firearms in overseas locations, where consistent with applicable host-nation laws, any Status of Forces Agreement, and other applicable international agreements. Combatant Commanders (CCDR) and MAJCOM/FLDCOM Commanders may delegate approval authority to their deputy to authorize personnel to bear firearms in any foreign country for other than routine law and order and security duties, where consistent with applicable host-nation laws, and Status of Forces Agreement and other applicable international agreements.

2.1.5.1. Commanders may impose additional restrictions on any approval to bear firearms beyond that contained in this instruction where necessary to ensure consistency with applicable host-nation laws, any Status of Forces Agreement and other applicable international agreements. MAJCOM/FLDCOM Commands list any additional restrictions

in supplements to this instruction or in a foreign clearance guide when a supplement is not feasible. In some overseas locations, authorization to bear firearms must be stated in the Foreign Clearance Guide or specifically approved by the US Embassy. **(T-0)**

2.1.5.2. Contractors proposing the arming of their employees must comply with applicable contract terms and conditions, federal law, and regulatory guidance. **(T-0)** Officers and contractors proposing the arming of employees must also comply with applicable contract terms and conditions, including applicable solicitation provisions and contract clauses, addressing the arming of contractor personnel. **(T-0)** The contents of this instruction shall be incorporated into any such contractual agreement, when not in conflict with host-nations law overseas. **(T-2)**

2.2. Bearing Firearms Factors.

2.2.1. Arming Authorities must continually evaluate personnel required to perform armed duty and withdraw the authorization when necessary. **(T-0)**

2.2.2. Commanders must ensure all personnel, before being authorized to carry firearms, are properly screened consistent with DoD Directive (DoDD) 52105.56, paragraph 3.1b, per the provisions of Chapter 44 of Title 18; Department of Defense Manual (DoDM) 5200.02, *Procedures For The DoD Personnel Security Program (PSP)*; DoDI 5200.46, *DoD Investigative and Adjudicative Guidance for Issuing the Common Access Card (CAC)*; DoDI 6400.06, *DoD Coordinated Community Response to Domestic Abuse Involving DoD Military and Certain Affiliated Personnel*; and DoDD 5210.56, *Arming and the Use of Force*. **(T-0)**

2.2.2.1. Commanders who are made aware of a concerning behavioral factor, as outlined in DoDI 6490.04, *Mental Health Evaluations of Members of the Military Service,* for someone in their command will review all circumstances that caused the concern and take immediate action to either temporarily withdraw or retain the affected person's authority to bear a firearm. **(T-1)** If warranted, commanders must also deny the person access to any government owned firearm and any ammunition. Commanders should consult the servicing Staff Judge Advocate (SGA) for personal owned firearms and ammunition stored in a government firearm storage facility. **(T-1)**

2.2.2.2. Medical providers will follow guidance in accordance with AFI 48-133, *Duty Limiting Conditions,* for individuals who have a medical condition that may impair their ability to bear firearms. **(T-1)**

2.2.2.3. Everyone has a responsibility to stay alert for behavioral and physical factors that may indicate an individual should not be armed. If there is an indication, reasonable suspicion, or evidence of impairment of a person's mental or physical ability to bear firearms, notify that person's first sergeant or commander as soon as practicable. This includes, but is not limited to, information regarding a person's legal inability to bear firearms, resulting from an adjudication of mental defect per 18 U.S.C. § 922(g)(4) (*Unlawful Acts*). First Sergeants will report this information to the commander immediately. **(T-1)** **Note**: Reference DoDM 5210.42_DAFMAN 13-501, *Nuclear Weapons Personnel Reliability Program* as a guideline to continuously evaluate personality and behavior factors.

2.2.2.4. Commanders must consult the servicing SJA when concerns exist about an individual's ability to bear firearms, and the individual has personal firearms located on

the installation. Commanders may encourage Airman/Guardians to voluntarily store POFs on the installation on a temporary basis, where there are reasonable grounds to believe a mental health issue exists. Refer to DoDI 6400.09.

2.2.3. Commanders are responsible for ensuring all military personnel and relevant DoD civilians are briefed annually on the requirements under the Gun Control Act of 1968 and the Lautenberg Amendment (as implemented in DoDI 6400.06) (see **Figure 2.1**). **(T-0)**

2.2.3.1. Commanders will ensure personnel annually complete and annotate the DD Form 2760, *Qualification to Possess Firearms or Ammunition.* **(T-0) Note:** Annually is defined as the last day of the twelfth month following the preceding completion; for example, if a DD Form 2760 was previously signed on 10 Jun 22, a new form will have to be signed no later than 30 Jun 23. A current signed DD Form 2760 must be in place prior to performing duties requiring the use of a firearm, destructive device, or ammunition. **(T-0)** The DD Form 2760 will be valid for a period of one year. File this form in the unit's personnel file management system. **(T-0)**

2.2.3.2. Arming authorities must not arm personnel who are ineligible under the Gun Control Act of 1968, such as those convicted of a qualifying domestic violence crime pursuant to 18 U.S.C. § 922(g)(9) (Lautenberg Amendment) or may otherwise be ineligible in accordance with DoD and DAFI guidance prohibiting their arming, including DoDI 6400.06 and DAFI 51-201, *Administration of Military Justice*. **(T-0)**

2.2.3.2.1. Commanders will initiate an appropriate investigation to confirm suspected convictions that may limit the person's access to firearms or ammunition. **(T-1)** Except for wrongful drug use and possession as outlined in DAFI 51-201, a qualifying conviction does not include a guilty finding by summary courts-martial or nonjudicial punishment imposed under Article 15 of the Uniform Code of Military Justice, or deferred prosecutions or similar alternative dispositions in civilian courts. **(T-0)**

2.2.3.2.2. For personnel found to have a qualifying domestic violence conviction, the commander will immediately retrieve all government issued firearms and ammunition, permanently withdraw their authority to possess firearms or ammunition, and advise them in writing to legally dispose of any POFs or ammunition they possess. **(T-0)** Refer to DAFMAN 71-102, *Air Force Criminal Indexing,* for guidance regarding the disposition of personally owned firearms and ammunition under the government's control, and notification of the prohibition to the individual via AF Form 177, *Notice of Qualification for Prohibitions of Firearms*. **(T-1)**

2.2.3.3. A *Lautenberg Amendment* notice must be posted in all facilities in which Government firearms or ammunition are stored, issued, disposed of, and transported. **(T-0)** See **Figure 2.1**.

Figure 2.1. Domestic Violence Amendment/Lautenberg Notice Example.

The duties, activities, or responsibilities performed in this area or facility require employees and military personnel to store, issue, dispose of, or transport firearms or ammunition. 18 U.S.C. § 922 prohibits certain persons from: using firearms or ammunition; selling or disposing of firearms or ammunition; receiving, possessing, shipping, or transporting firearms or ammunition; or other duties, activities or responsibilities involving firearms or ammunition. Any person who has been convicted of a crime of domestic violence is not eligible to perform these duties. Employees and military personnel have an affirmative, continuing obligation to inform their supervisors if they have, or later obtain, a qualifying conviction, which includes domestic violence convictions and convictions of offenses punishable by more than one year imprisonment. Candidates selected to fill these positions certify they have not been convicted of a qualifying crime of domestic violence, or of an offense punishable by more than one year imprisonment, and that they were not subject to a protective order for domestic violence prior to assuming the duties of the position. False or fraudulent information provided by candidates is crime punishable by fine or imprisonment, reference 18 U.S.C. § 1001 (*Statements or Entries Generally*); and Article 107, Uniform Code of Military Justice (*False Official Statement)* for military personnel and will result in referral to commanders for appropriate action.

2.2.3.4. Guidance on personnel with an Air Force Specialty Code (AFSC) requiring qualification to bear arms, and who have a qualifying conviction, that will have their AFSC withdrawn is provided in AFMAN 36-2100, *Military Utilization and Classification*. **(T-1)** Personnel with qualifying convictions will be awarded a "T" assignment limitation code. **(T-1)** A "T" assignment limitation code states the Airman is not qualified to ship, transport, possess, or receive firearms or ammunition.

2.3. Withdrawal of Authorization to Bear Firearms.

2.3.1. **Temporary Arming Withdrawal (TAW)** . Commanders may temporarily withdraw an individual's approval to bear firearms for a period of fewer than 72-hours by oral notification. This authority to withdraw DoD personnel performing of official duties extends to all government-issued weapons, including approved privately-owned firearms. The commander, deputy commander, or duty roster authentication official must make the oral notification to the servicing armory, the individual and their supervisor of the nature and circumstance of the TAW. **(T-3)** If applicable, notice to the affected individual will also include a restriction from carrying a firearm on the installation pursuant 18 U.S.C. §§ 926B – 926C (Law Enforcement Officers Safety Act (LEOSA)). **(T-0)** Servicing armories will take appropriate action to ensure a weapon is not issued to a person whose authority has been withdrawn. **(T-2)** Refer to AFMAN 71-102 for guidance regarding the return/issuance of personally owned firearms and ammunition under the government's control.

2.3.1.1. The AUoF monitor will coordinate with the servicing unit security assistant to determine if the TAW meets the requirements to initiate an Incident Report or if an Incident Report has already been initiated.

2.3.1.2. The unit security assistant should, after review, determine if the Installation Protection Office (IPO) needs to be contacted, as necessary, for further determination of the Security Executive Agent Directive (SEAD) 4, 13 adjudicative guidelines. The IPO, if

contacted, will determine the need to report to the counter-insider threat program and whether the nature of the circumstances of the TAW overlap continuous vetting.

2.3.1.3. The servicing IPO will notify the AUoF monitor of DISS incidents that may require immediate notification to the commander for TAW or permanent arming withdrawal determination.

2.3.1.4. Within one duty day of the determination to temporarily withdraw authority to bear arms, an updated TAW roster or memorandum or both, signed by the commander or designated representative, informing the servicing armory(s) of the withdrawal will be accomplished. **(T-2)** File the temporary withdrawal in the unit's personnel file management system (e.g., an electronic records management system or personnel information file). **(T-2)** Commanders, in consultation with the proper authorities, as applicable, must review the temporary status every 180 calendar days to either reaffirm or take other appropriate action. **(T-2)** Commanders of SF personnel conduct reviews in accordance with **Chapter 4**.

2.3.1.5. Commanders, or their designated representative who is withdrawing an individual's authority to bear firearms for more than 72-hours, must notify the individual in writing and provide a brief synopsis of circumstances that form the basis for withdrawal. **(T-1)** If applicable, notice to the affected individual will also include a restriction from carrying a firearm on the installation pursuant to LEOSA. **(T-0)** Individuals must acknowledge withdrawal action by endorsement on the notification letter and be given a copy of the withdrawal action. **(T-3)** In the event member refuses to sign then the commander may sign with a witness signature stating member refused to sign. **(T-3)**

2.3.1.5.1. **(Added-USAFE-AFAFRICA)** AUoF monitors must complete the myLearning online PRAP course (L6-PRAP Course V2.0) within 15 days of being appointment to the position. These personnel must receive privacy training before receiving notifications. **(T-3)**

2.3.1.6. Commanders will TAW to bear firearms from personnel for reasons including: **(T-1)**

2.3.1.6.1. Identified unlawful substance abuse or positive drug test with substantiated investigation. **(T-1)** Refer to AFMAN 71-102 for additional guidance.

2.3.1.6.2. Emotional instability or behavioral factors suggesting they are incapable of using firearms with care (Reference DoDM 5210.42_DAFMAN 13-501). **(T-1)**

2.3.1.6.3. Determined by medical authority to be suffering from a condition that could impact the person's ability to bear firearms, including alcohol use disorders. **(T-1)**

2.3.1.6.4. Taking prescription medication that impairs their ability to use firearms. **(T-1)** The treating physician will immediately notify the commander if medication that could impair the ability to handle firearms is prescribed, for example, psychoactive medication, narcotic, or sedating drug that could negatively affect the Airman or Guardian's cognitive ability to make a critical decision with a firearm (e.g., a split-second decision involving deadly force). **(T-1)** If the commander, in consultation with the treating physician, determines an individual will not have access to firearms, such

decision will be documented. **(T-1) Note:** Use of prescription medication does not always disqualify individuals from bearing firearms.

2.3.1.6.5. Relieved of duty pending a use of force inquiry, investigation, or Use of Force Review Board following a use of force incident. **(T-1) Note:** A pending Use of Force Review Board may be a factor in commander consideration of returning authorization to bear a firearm to the affected person(s); however, the decision to convene a Use of Force Review Board does not prohibit commanders from conducting independent investigations or inquiries and acting on the evidence or conclusions produced.

2.3.1.7. Commanders must not deny assignments, promotions, or reenlistment solely because of the TAW. However, commanders will consider the underlying reason(s) for the temporary withdrawal, such as whether the withdrawal is the result of a legal prohibition under 18 U.S.C. § 922. **(T-1)**

2.3.2. **Permanent Withdrawal.** If unit commanders, their delegates, or superior authorities decide to permanently withdraw a person's authorization to bear firearms, they must consider all circumstances, including legal prohibitions, the person's duty performance, relevant medical conditions, and disciplinary records to ensure this decision is warranted. **(T-1)** The commander, deputy commander, or duty roster authentication official must make the oral notification to the servicing armory, the individual and their supervisor of the nature and circumstance of the Permanent Arming Withdrawal (PAW). They may also consult the Force Support Squadron Commander, servicing Staff Judge Advocate Office, medical primary care manager, medical specialty care providers (to include mental health providers), and Defense Force Commander before taking this action. Commanders must document permanent withdrawal or reinstatement via DAF Form 590, *Withdrawal/Reinstatement of Authority to Bear Firearms*. **(T-0)** Guidance on this process is located in DAFI 36-2608, *Military Personnel Records System*. If applicable, notice to the affected individual will also include a restriction from carrying a firearm on the installation pursuant to LEOSA. **(T-0)**

2.3.2.1. Unit security assistant will determine if the PAW meets the requirements to initiate an Incident Report or if an Incident report has already been initiated.

2.3.2.2. The unit security assistant should, after review, determine if the IPO needs to be contacted, as necessary, for further determination of the SEAD 4, 13 adjudicative guidelines. The IPO, if contacted, will determine the need to report to the counter-insider threat program and whether the nature of the circumstances of the PAW overlap continuous vetting.

2.3.2.3. When the person's AFSC description in Department of the Air Force Officer Classification Directory (DAFOCD) or Department of the Air Force Enlisted Classification Directory (DAFECD) requires qualification to bear firearms, commanders must take appropriate action by removing them from their designated AFSC and allocating them in a non-arming AFSC according to AFMAN 36-2100. **(T-1)** Commanders will permanently withdraw the authority to bear firearms for individuals if it is determined the individual does not meet the retention requirements outlined in the appropriate DAFECD or DAFOCD. **(T-1)**

2.3.2.4. When issuing the permanent withdrawal of authority to bear firearms to military personnel, commanders submit a copy of the written withdrawal action to the Force Support Squadron along with those documents withdrawing the affected person's AFSC. **(T-1)**

2.3.2.5. File all correspondence dealing with permanent withdrawal in the unit's personnel file management system (e.g., an electronic records management system).

2.3.2.6. The decision to withdraw a person's authority to bear firearms does not necessarily mandate administrative separation. Commanders must review the DAFOCD or DAFECD to assess the arming requirement for the AFSC. **(T-1)** Commanders must disqualify those personnel from the affected AFSC if arming is required for AFSC retention. **(T-1)**

2.3.2.7. Commanders can review the basis for the withdrawal to determine whether disciplinary or administrative action may be appropriate.

2.4. Reinstatement of Authorization to Bear Firearms. Commanders or their properly authorized delegates, may reinstate a person's authority to handle or bear arms upon receiving a favorable report of a completed investigation, corrective action, medical evaluation, successful treatment and remission of a medical and/or mental health condition with a supporting recommendation from treating physician(s), or where the commander (or their authorized delegate) no longer has concerns about the person's ability to safely bear firearms.

2.4.1. The individual will be notified in writing of the reinstatement and a TAW roster or memorandum, or both will be provided to the servicing armory no later than 24-hours after reinstatement. **(T-2)**

2.4.2. Servicing armory(s) must receive written reinstatement notification signed by the commander, deputy commanders or directors, or an updated TAW roster prior to arming reinstated personnel. **(T-0)** The Department of Airforce Criminal Justice Information will conduct a disposition of firearms check prior to returning privately owned weapons. AFMAN 71-102 can provide further guidance regarding the return/issuance of personally owned firearms and ammunition under the government's control.

2.4.3. File all correspondence or documentation dealing with reinstatement in the unit's personnel file management system (e.g., an electronic records management system).

2.4.4. The administrative process to document and notify the Force Support Squadron of the reinstatement is the same as to execute the withdrawal (see **paragraph 2.3.2**.).

2.5. Documenting Authorization to Bear Firearms. The arming authority must provide written authorization for assigned personnel to carry firearms. **(T-0)** If written authorization for assigned personnel to carry firearms is more than one page in length, each page must have the commander's signature. **(T-3) Note:** Common Access Card signature is preferred. The arming authority must ensure individual was screened, Lautenberg Amendment briefing was conducted with a current DD Form 2760 on file, weapon(s) qualification, sustainment training (if required), and use of force training completed prior to authorizing an individual to arm for duty. **(T-0)**

2.5.1. Uniformed Personnel. Written authorizations can be issued as single multiple-listing memorandums, computerized rosters, aircrew orders, or another document. Authorizations must identify the individual by name, Department of Defense Electronic Data Interchange Personal Identifier, firearm type, qualification and expiration date for the weapon(s) carried.

(T-2) The original written authorization will be provided to the organization's servicing arms room, armory, or mobility weapons storage area. **(T-2)** For individuals other than SF personnel, the armorer must verify the arming authorization of each person requesting a firearm through review of a signed written authorization prior to issuing firearms. **(T-2)** SF units may use the following procedures in lieu of the requirement for the armorer to review written authorization from the authorizing official.

2.5.1.1. SF Commanders and United States Air Forces in Europe, Munition Support Squadron Commanders will develop local policy permitting the signature (Common Access Card signature or ink) of an "authentication official" on the AF Form 629, *Small Arms Hand Receipt*, to serve as verification of authority to bear firearms. **(T-1)** Local written policies must clearly state: the source document authorizing authenticating officials to sign; where the source documents are maintained; procedures for updating source documents and identify the authentication officials authorized to sign AF Form 629. **(T-1)**

2.5.1.2. Authenticating official's name must be clearly printed or typed on the AF Form 629 and the armory must maintain a document showing who is authorized to sign the form. By signing the AF Form 629, the "authentication official" certifies the individual being armed meets the requirements for arming (e.g., weapons qualifications, use of force training, DD Form 2760).

2.5.1.3. If these procedures are implemented, authentication officials verify authority to bear firearms prior to issuing AF Form 629. The armorer must confirm each individual's authorization to bear firearms through review of daily duty rosters and ensure personnel being armed possess a valid AF Form 629 prior to issuing firearms. **(T-1)** Additionally, the armorer must ensure the person is not currently listed on the "TAW Roster." **(T-1)**

2.5.2. Personnel not in uniform performing official military duty must carry an DAF Form 523, *USAF Authorization to Bear Firearms*, when armed and surrender the form to authorizing officials when duties requiring firearms are complete. **(T-1)**

2.5.3. Carrying Concealed Firearms. The DAF prohibits all military, civilian, and contract employees from carrying concealed firearms on duty except when specifically authorized in writing by an authorizing official (as identified in **paragraph 2.1.1.**, **paragraph 2.1.2,** and **paragraph 2.1.4**), while performing official military duties. Personnel must carry a DAF Form 523 while bearing concealed firearms except when circumstances compromise the mission. **(T-1)** In cases where a mission could be compromised, the authorizing official retains the form.

2.5.3.1. DAF Form 523 Requirements. DAF Form 523 will use standardized permit numbers. **(T-1)** For example, 88 Security Forces Squadron 12-2023 refers to the 12th permit issued by the 88th Security Forces Squadron at Wright-Patterson AFB, Ohio, in 2023. The permit number on a DAF Form 523 includes the heading "CONCEALED" preceding the permit number. DAF Form 523 issued for off-base operations require full-face photographs. **(T-2)** All others contain the statement "VALID ON (INSTALLATION NAME) ONLY." **(T-2)**

2.5.3.2. Installation Commanders, including Air National Guard, may authorize personnel to retain an DAF Form 523 when missions require those personnel to bear a concealed firearm on a regular basis.

2.5.3.3. Carrying Weapons Off Duty. Notwithstanding the provisions of 18 U.S.C. § 926B and 18 U.S.C. § 926C, Security Forces (military and civilian personnel) are not authorized to carry concealed government-issued weapons off-duty. **(T-1)**

2.5.4. Exceptions to written authorization to bear firearms is not required in the following situations and circumstances.

2.5.4.1. Uniformed military personnel performing an operational mission in a combat or hostile-fire zone or in situations requiring immediate action to protect life or property. **Note:** SF Augmentees are not considered AUoF.

2.5.4.2. Civilian contract guards may bear POFs meeting the DAF Statement of Work specifications within the DAF contract. Contract requirements must ensure weapon model and munitions comply with DoD/DAF and local guidelines. **(T-0)** Civilian contract guards who carry firearms or non-lethal weapons in concurrent or proprietary jurisdiction may be subject to state law and any carry therein must comply with state and local law.

2.5.4.3. Personnel performing honor guard duties who use firearms for ceremonial purposes (i.e., no live ammunition) need only comply with **paragraph 2.9** and **paragraph 2.10** of this instruction.

2.5.4.4. An AFOSI badge and credentials serve as authority to carry firearms openly or concealed in lieu of written authorization and an AF Form 523, *Authorization to Bear Firearms*.

2.5.4.5. SF Investigators/Detectives, when performing official duties and armed with US Government-issued firearm, must carry their respective AF Form 688A/B, *Security Forces Investigator/Detective Credential*, and appropriate badge/shield in lieu of an DAF Form 523. **(T-1)**

2.5.4.6. Official aircrew orders or Contingency, Exercise, Deployment orders, specifying that the Airmen/Guardian is authorized to carry a concealed firearm, satisfies the written authorization requirement, and may be used in lieu of the DAF Form 523.

2.6. Arming Plans. Commanders must develop plans that specifically identify who may bear firearms and under what circumstances they will be armed. **(T-1)** Installation Commanders must incorporate these plans into existing programs for base defense, addressing personnel arming requirements during defense readiness condition changes, force protection condition changes, and other military contingencies. **(T-1)** Commanders must take into consideration non-lethal weapons when developing an arming plan. **(T-1)**

2.6.1. Routine Operations. Commander developed plans will be consistent with the requirements of this instruction. Additionally, installation arming plans must contemplate local and state law regarding the carry of firearms, the carry of non-lethal weapons (e.g., conducted energy weapons), and use of force by contract security/law enforcement personnel. **(T-0)** Consultation with the Staff Judge Advocate Office is required. **(T-2)**

2.6.2. Mobility Forces. Commanders may arm deployable forces to support contingency, wartime, or training operations. A command contingency plan or tasking message provides the arming requirements for deploying personnel.

2.6.2.1. The contingency plan or tasking message describes the type of firearms required, the arming mission, the anticipated tasks armed personnel will perform, and the command-and-control elements.

2.6.2.2. Supported commands develop guidance and procedures on selectively arming and employing these personnel.

2.6.3. Armed Base Defense (Military and Civilian) Personnel. These personnel are prohibited from carrying government owned firearms to any appointments or non-authorized locations located off the installation (e.g., courthouse, medical facilities). **(T-2)**

2.7. Arming Senior Military and Civilian Officials. MAJCOM, FLDCOM and CCDR, or their designees, may authorize senior military and civilian officials to carry firearms for personal protection in high-threat overseas areas where US government or other legitimate intelligence analysis identifies a credible threat against US personnel. MAJCOM, FLDCOM, and CCDR issue this authorization on a case-by-case basis for a specified assignment and must ensure compliance with appropriate host-nation laws and applicable Status of Forces Agreements and international agreements. **(T-0)** This responsibility may be delegated to deputy commanders. **Note**: Senior military and civilian officials may not be armed (equipped with a loaded firearm) for personal protection when on duty or on military installations within the United States without written approval of either the Secretary or Deputy Secretary of Defense. **(T-0)**

2.7.1. The *Air Force General Officer Handbook* contains information regarding General Officer Personal Defense Weapons.

2.7.2. Considerations. Before issuing authorizations to carry firearms for personal protection, commanders must consider the following: **(T-0)**

2.7.2.1. The likelihood of the threat in a particular location.

2.7.2.2. The adequacies of Department of Defense protective personnel support.

2.7.2.3. The adequacy of host-nation protection.

2.7.2.4. The effectiveness of other means to avoid personal attacks.

2.7.2.5. The Department of State Criminal Threat levels.

2.7.2.6. The Defense Intelligence Agency Intelligence, Political, and Terrorism threat levels.

2.7.2.7. Department of Defense Threat Assessments.

2.7.2.8. Local Threat Assessment.

2.7.3. Authorized armed drivers for designated senior DAF military and civilian officials must meet all qualification and training requirements established by AFOSI and comply with all provisions of this instruction. **(T-1)** All drivers will inform the installation SF, AFOSI detachment, and appropriate local civil authorities of their arming authorization. **(T-2)** AFOSI is the single point of contact for all protective service operations, protecting senior US, DoD, DAF, and Allied officials. **(T-1)**

2.8. Weapons Qualification and Use of Force Training Requirements.

2.8.1. Weapons. Personnel with an arming requirement (i.e., home station or deployment) follow the guidance in AFI 36-2654, *Combat Arms Program*, for qualification-training. Unit Commanders will ensure personnel are screened, the Gun Control Act of 1968/Lautenberg Amendment brief conducted, and a signed DD Form 2760 is on file prior to sending personnel for weapons training or exercises where they may handle firearms. **(T-0)** See **paragraph 2.15** and sub-paragraphs for non-lethal weapon (NLW) guidance.

2.8.2. Use of Force. Personnel with a home station arming requirement will complete career field specific or unit-developed use of force training annually. Unit-developed training shall be reviewed by the servicing SJA. **(T-0) Note**: Annually is defined as the last day of the twelfth month following the preceding completion: for example, if use of force training was conducted on 10 Jun 24, training would need to be accomplished no later than 30 Jun 25. Training will incorporate realistic scenario-based exercises the individual can potentially encounter. **(T-3)** Additionally, use of force training must address deadly and less-than-lethal force options; duty to recognize, prevent and intervene in and report improper use of force; duty to render medical aid; and de-escalation tactics and techniques. **(T-2)** Personnel with a deployment arming requirement complete the use of force training on myLearning. **Note:** Chokeholds are not an authorized control technique.

2.9. Transporting Firearms. Individuals may transport their assigned weapons in their privately-owned vehicle in the furtherance of their official duties to and from ports of commercial and military transportation. Individuals may transport their assigned weapons to on or off-base firing ranges, consistent with DoD and DAF policy, and applicable state/local laws, host-nation agreements and Status of Forces Agreements governing transportation and carrying of weapons.

2.10. Carrying Firearms as a Passenger aboard Aircraft. Military and civilian law enforcement officers may bear government firearms aboard military aircraft while performing official military duties if the mission requires the carry of a firearm during the flight. See DoDI 5525.14, *DoD Law Enforcement Officers (LEOs) Flying Armed*. For Base SF personnel, when the carriage of a government firearm aboard commercial aircraft is necessary, contact AFSFC AF Confinement and Corrections. Requirements for AF personnel are pursuant to DoD Law Enforcement Officers flying armed and DAFMAN 31-115 V1, *Air Force Corrections System*.

2.10.1. Personnel carrying firearms aboard military aircraft will notify the aircraft commander prior to flight. **(T-2)**

2.10.2. Personnel armed in the performance of duty or transporting firearms aboard military aircraft must possess official written authorization (e.g., Contingency, Exercise, Deployment orders, a memorandum of authorization, credentials). **(T-0)** Official aircrew orders or a current DAF Form 523 will suffice to meet the written authorization requirements for aircrew personnel aboard military aircraft. **(T-1)** Refer to DAFMAN 31-115 V1 for more specific information.

2.10.3. Additional or specialized training is not required for performing official duties aboard military aircraft. However, it is recommended installation SF personnel complete the same requirements as flying commercial aircraft. Training for commercial aircraft requires completion of the Transportation Security Administration's "Law Enforcement Officer Flying Armed" training course (which requires annual recertification). **(T-0)** Base SF personnel must

meet arming requirements, complete the AF concealed carry training, and be qualified on the appropriate handgun qualification course. The Transportation Security Administration "Law Enforcement Officer Flying Armed" training course may be taught by a DAF instructor who has attended Basic Instructor Course or Principles of Instruction; or by attending a course of instruction provided by qualified agent of an authorized agency, such as the Federal Air Marshals.

2.11. Firearms as Signaling Devices. Firearms may be used as an emergency signaling device only as a last resort in life-threatening situations. This is only authorized when all other means of communication have failed, or no other means of communication are available to sound the alarm. **(T-0)** Firearms signaling is conducted by firing three shots in rapid succession, in a safe direction, away from resources and populated areas. **Note:** "Signaling" in this context must be understood as distinct from "warning" in relation to which there are express limitations (see **paragraph 3.11**.).

2.12. Firearms Discharges. Commanders have the inherent authority to conduct a commander-directed investigation to investigate matters arising under their command, which include investigating allegations of deliberate and negligent firearm discharges of government-issued weapons where there are no injuries, deaths, or significant property damages. **(T-1)** The checklist at **Attachment 5** provides commanders and supervisors a guide to ensure critical actions are taken immediately following a firearms discharge, and actions that may similarly be taken following any alleged use of force. Personnel must immediately report firearm discharges to their commander, the commander of the person who discharged the firearm (if different), and to installation SF. **(T-1)**

2.12.1. Commander Responsibilities. The commander of the person who discharged a firearm will accomplish the following: **(T-1)**

2.12.1.1. Secure the incident scene and direct an investigation of the incident as soon as practicable or contact SF for scene security and/or investigative assistance. **(T-1)**

2.12.1.2. Initiate a commander-directed investigation, or request SF investigative assistance if the commander suspects a crime has occurred or if a use of force incident has occurred that may require a Use of Force Review Board. **(T-1)** Reference **paragraph 2.13** concerning Use of Force Review Boards.

2.12.1.3. Consider Disaster Mental Health Team activation to include chaplain support following such incidents and should allow personnel involved to contact their family.

2.12.1.4. Temporarily withdraw the person's authorization to bear a firearm immediately until completion of the investigation and, if necessary, until the person completes a remedial firearms training course (mechanical portion only). **(T-1)**

2.12.1.5. Notify public affairs, even if unauthorized firearm discharge did not involve injury, death, or property damage. **(T-1)**

2.12.1.6. Consider whether corrective action is appropriate, to include administrative or disciplinary actions, if investigation reveals the person used the firearm negligently or has a training deficiency. **(T-1)**

2.12.1.7. Return the affected person to duty immediately if results of the investigation or other conclusive evidence show the person discharged the firearm according to established policy. **(T-1)**

2.12.1.8. Contact the supporting base Combat Arms agency/office to complete the actions directed in AFI 36-2654 to determine the operational condition of the weapon involved. **(T-1)** Combat Arms will accomplish this upon completion of the initial investigation and before any other personnel handle the weapon, other than clearing/unloading following the guidance in DAFMAN 31-129 to make the weapon safe, unless a crime is suspected, or the firearm is evidence in an official criminal investigation. **(T-1) Note:** If the firearm is evidence in a crime reference DAFMAN 31-103V2, *Investigations Program*, for further guidance.

2.12.2. Reporting Requirements. Installation Commanders will ensure reports are sent to their MAJCOM SF division or Field Operating Agency instructions if US military personnel, contract employee or civilian employee discharges a government owned firearm during any non-combat related event. **(T-2)** This does not apply to training events such as qualification firing and live fire exercises unless the apparently unintentional or negligent discharges resulted in injury to persons or damage to property. **(T-2)**

2.12.2.1. **(Added-USAFE-AFAFRICA)** Commanders will ensure all weapons discharges are reported within 24 hours through their installation commanders to HQ USAFE-AFAFRICA/A4S. Commanders will ensure lessons learned reports are submitted for all firearms discharges. These reports will be submitted to HQ USAFE-AFAFRICA/A4S within 30 calendar days of the discharge using the format shown in **Attachment 5**. **(T-2)**

2.12.3. When a firearm discharge involves an injury, fatality, or meets the reporting guidelines in AFMAN 10-206, *Operational Reporting (OPREP)*, report the incidents as follows:

2.12.3.1. Report incidents using Operational Reporting-3 (OPREP) message format, **Attachment 2** **(T-1)**

2.12.3.1.1. **(Added-USAFE-AFAFRICA)** The installation commander will send information copies of the operations report "OPREP 3/BEELINE" message to HQ USAFE-AFRICA/A4S within 24 hours of the incident. **(T-2)**

2.12.3.2. Send messages to AF/A4S, AFSFC/Plans (S5) and MAJCOM SF within 24-hours of the incident using Report Control Symbol AF/A3OO (AF Operations Group). **(T-1)** Send messages via e-mail to: **afsfc.sfp@us.af.mil**. Designate reports priority, emergency status code C1, and continue reporting during emergency conditions and ensure the reports are concise and to the point. AFSFC will notify AF/A4S, AFIMSC/IZP and all MAJCOM SF of incidents related to SF. **(T-1)** AFSFC/Intel Fusion Center will forward all notifications to AFSFC/FPI (Integrated Defense/Police Services), AFSFC/FI (FP Planning and Integration) and AFSFC/Weapons Management. **(T-1)**

2.12.3.3. Send information copies to HAF or Field Operating Agency headquarters functional manager and to intermediate SF headquarters (Field Operating Agency, MAJCOM, or NAF) staff and functional manager of the unit involved. **(T-1)**

2.12.3.4. Send a written follow-up report in After Action Report format to the AFSFC (Law and Order Division) within 30 calendar days following all in-garrison deliberate and unauthorized firearm discharges. **(T-1)** Criminal investigations by the SF Investigations section or AFOSI into the discharge do not alleviate the need for an After-Action Report. **Note**: Reports may be sent via e-mail to: **AFSFC.FGC.Warfighter_support@us.af.mil**

and **afsfc.sfp@us.af.mil**. Contact the AFSFC/Operations Center in advance for any report requiring classified transmission over secret internet protocol router network.

2.13. Use of Force Review Board.

2.13.1. Introduction: Use of Force Review Boards are utilized to objectively evaluate the use of force by DAF personnel to ensure that their authority is used appropriately, consistent with training and policy. Use of Force Review Boards and criminal investigations are two separate and distinct processes with different purposes. The Use of Force Review Board is a process to review the facts and circumstances of an incident of a use of force (any instance involving a use of force by personnel to whom this instruction applies) and to identify any potential gaps in policy and training. Use of Force Review Board gathered information is not intended to be used in any related criminal investigation. However, Use of Force Review Board collected information, and materials are not generally privileged and may be subject to disclosure during the military courts-martial discovery process, may be admissible in a court-martial or may be used for administrative proceedings.

2.13.1.1. A Use of Force Review Board is not required or appropriate for all use of force incidents. Typically, local command inquiries or investigations are sufficient to evaluate the facts and circumstances surrounding use of force incidents involving non-lethal weapons. A Use of Force Review Board is often recommended by the Installation Commander to the MAJCOM/FLDCOM Commander when fatalities or serious injuries result from use of force firearm discharges. Negative media attention, civil reaction or local command investigation results are also considerations. Regardless, the MAJCOM/FLDCOM Commander may elect to convene (or not convene) a Use of Force Review Board for any use of force incident. Use of Force Review Boards are not appropriate for military operations conducted in accordance with Rules of Engagement.

2.13.1.2. The Use of Force Review Board reports to the owning MAJCOM/FLDCOM Commander. To align with established DAF inquiry processes, the Use of Force Review Board may use the Commander's Directed Investigation Guide as a reference on how to conduct the Board. The Board may refer to the chapter on how to conduct witness interviews and rights advisements under Article 31, UCMJ (military), or the Fifth Amendment to the United States Constitution (civilian).

2.13.1.3. Witnesses. If a concern arises between the investigative agency and the Use of Force Review Board over witness interviews, the investigative agency will have first right of access to the witness. **(T-1)**

2.13.1.4. If at any time the witness requests an attorney, even if not suspected of a punishable offense, stop the interview while the witness is referred to defense. **(T-0)**

2.13.2. Convening a Use of Force Review Board: The MAJCOM/FLDCOM Commander having authority at the location of the use of force incident will determine if a Use of Force Review Board is warranted. **(T-1)** The MAJCOM/FLDCOM Commander (or their designated representative) will initiate a Use of Force Review Board and appoint a Board President in writing. MAJCOM SF will staff recommendations to MAJCOM/FLDCOM Commanders for Use of Force Review Board initiation, as well as notify AF/A4S Director of SF and the AFSFC Commander. The AF/A4S Director of SF will facilitate the appointment of an impartial SF officer/civilian in the grade of O-6/GS-15 to serve as Board President through the MAJCOM

Security Forces. **Note:** The respective MAJCOM SF Commander cannot serve as Board President. **(T-1)**

2.13.2.1. A Use of Force Review Board will not be conducted during an open criminal investigation of the incident without approval by the investigating agency. **(T-1)**

2.13.2.2. A Use of Force Review Board is not appropriate for an unauthorized firearms discharge.

2.13.3. Use of force review board funding: AFIMSC will fund the use of force review board team and the use of force review board team requirements. **(T-1)**

2.13.4. Use of force review board timeline: Ideally, the board should convene within 14-30 calendar days after the incident and should be completed within 30 calendar days of its initiation. **(T-1)** The board may place a greater priority on a thorough, complete, and accurate report rather than meeting a specific deadline. If the board's review cannot be completed within this 30-calendar day period, the Board President will request an extension from the supported MAJCOM/FLDCOM. **(T-1)** The Board President will annotate the extension and approval in the report. **(T-1)**

2.13.5. Purpose of the Use of Force Review Board:

2.13.5.1. Provide an evaluation that takes into account results of any investigations or inquiries available relating to the use of force incident.

2.13.5.2. Determine if the individual(s) actions was/were consistent with their authority, as well as current policies and procedures.

2.13.5.3. Recommend, as determined necessary, changes in AF use of force and AFSC specific tactics, policies, procedures, or training.

2.13.6. Board personnel and their responsibilities. The board will be comprised of, at a minimum:

2.13.6.1. Board President. Presides over the board and makes final determination on the issues presented. Serves as the focal point for the use of force review board and conducts a review of the incident focusing on administrative rules and procedures for the board outlined in this instruction.

2.13.6.2. Air Staff SF Representative. AF/A4S will provide one representative to the board to provide the Use of Force Review Board president, with subject matter inputs and recommendations on policy and training. **(T-1)**

2.13.6.3. AFIMSC SF Representative. AFIMSC will provide a representative to the board to provide the use of force review board president with subject matter expert inputs and recommendations on AUoF tactics, techniques, procedures, and training. **(T-1)**

2.13.6.4. Legal Representative. The responsible SJA will appoint legal representation from within the affected MAJCOM (or supporting FLDCOM) to the board to provide legal counsel to the board and other Use of Force Review Board representatives, but not to the individual(s) involved in the incident. **(T-1) Note:** In addition, the legal representative may not provide legal counsel to any witness in the use of force board investigation. **(T-2)**

2.13.6.5. AFOSI Representative. In coordination with the Board President and MAJCOM SF, the responsible AFOSI Region Commander will appoint a vetted AFOSI special agent that has the demonstrable knowledge and experience, to be a disinterested party able to lend that experience and knowledge as it applies to the use of force. **(T-0)**

2.13.6.6. First-line SF Supervisor Representative. The Board President with coordination with the MAJCOM Security Forces, will appoint a first-line SF supervisor (minimum grade of E-6 or civilian equivalent and familiar with the duty position(s) of those personnel involved) not affiliated with or familiar with the individual(s) involved in the use of force incident. This individual, typically from a separate installation, is made available to provide a practical perspective on daily SF operations. **(T-1)**

2.13.6.7. Psychologist. The responsible MAJCOM SF will request a psychologist from within the affected MAJCOM/FLDCOM to be assigned to the board who will:

2.13.6.7.1. Provide psychological expertise and insights to the board as a subject matter expert. **(T-1)**

2.13.6.7.2. The psychologist may make referrals to qualified counselors for involved personnel, if requested. **(T-1)**

2.13.6.8. Other Personnel. The Board President determines other participants of the use of force review board (e.g., administrator, functional experts) or other advisors, and will coordinate with the MAJCOM SF and AFSFC for support. The investigators who conducted the criminal investigation will not be included as a participant of the use of force review board. **(T-2)** The use of force review board president may have the investigators appear before the board to brief the facts of the investigation and answer any questions.

2.13.7. Legal Considerations for a Use of Force Incident. Typically, local law enforcement agencies have investigative responsibility for shootings or use of force incidents within their jurisdictions. That responsibility does not change because one of the participants in the use of force incidents is affiliated with the DAF. Accordingly, if an Airman or Guardian is involved in an off-base use of force incident in which local authorities and DAF have concurrent jurisdiction, the reasonable assumption is that local authorities will conduct an investigation in addition to a review by the use of force review board. The appointed Use of Force Review Board legal representative will advise the Board President regarding applicable provisions, if any, scope of employment, local or state law enforcement investigation policies and procedures, and any potential local or state prosecution concerns. **(T-0)**

2.13.8. Interviews: Prior to conducting any interviews, the Board will inform the interviewees that any information provided to or gathered by the board may be discoverable in an administrative or judicial proceeding or may be releasable under the Freedom of Information Act. **(T-1)**

2.13.9. The use of force review board report. The use of force review board report will contain, at a minimum, the following information:

2.13.9.1. A summary of the facts and circumstances surrounding the use of force incident. A SF firearms discharge / non-lethal weapons employment report must be completed by the unit involved. **(T-1)**

2.13.9.2. A summary of all interviews conducted by the Use of Force Review Board. **(T-1)**

2.13.9.3. Findings of the Use of Force Review Board. **(T-1)**

2.13.9.4. Dissenting opinions. **(T-1)**

2.13.9.5. Any identified training deficiencies or issues. **(T-1)**

2.13.9.6. Any identified policy deficiencies or gaps. **(T-1)**

2.13.9.7. Additional information as determined by the board president. **(T-1)**

2.13.9.8. Recommendations of the use of force review board. **(T-1)**

2.13.10. The Use of Force Review Board senior leader outbrief. An out-brief to the Installation Commander is required. **(T-1)** Upon request, the Board President will provide the out brief to the MAJCOM/FLDCOM Commander (or their designated representative), AF/A4S, AFSFC Commander and MAJCOM SF. **(T-1)** The MAJCOM Command SF will assist the Board President in the scheduling and presentation of the briefing(s).

2.13.10.1. Information and conclusions presented during the senior leader out-brief may be considered by the appropriate commander to determine whether authority to bear a firearm should be reinstated. **Note:** See **paragraph 2.4** regarding reinstatement of authority to bear firearms. **(T-1)**

2.13.10.2. Additionally, the Use of Force Review Board President or representative will provide a Use of Force Review Board report and senior leader out-brief at the next convening SF Executive Board. **(T-3)**

2.13.11. During the first 90 days after report is signed, distribution of the final report will be determined by the owning MAJCOM/FLDCOM Commander but will include the AF/A4S, AFSFC/Commander and the affected MAJCOM SF. Unless compelled by law or policy, neither the Board President nor any participant of an use of force review board will release information to any party not designated by the MAJCOM/FLDCOM Commander or outlined in this instruction without prior approval of the owning MAJCOM SF in coordination with the supporting SJA. After 90 days, a redacted report can be used for functional training development, policy/TTP review, lessons learned. Officers and SNCOs, should understand and use the positive takeaways and the areas of improvement within the reports for working groups, Operational Planning Teams, Specialty Training Requirements Team, training development, and policy development. **(T-2) Note:** The AFSFC is the repository for all use of force review board reports.

2.14. Non-Lethal Weapons. DoDD 3000.03E, *DoD Executive Agent for Non-Lethal Weapons (NLW), and NLW Policy,* states non-lethal weapons are "weapons, devices, and munitions that are explicitly designed and primarily employed to incapacitate targeted personnel or materiel immediately, while minimizing fatalities, permanent injury to personnel, and undesired damage to property, in the target area or environment. Non-lethal weapons are intended to have reversible effects on personnel and materiel."

2.14.1. Non-lethal weapons employ means other than gross physical destruction to prevent the target from functioning. Non-lethal weapons are intended to have one, or both, of the following characteristics: They have relatively reversible effects on personnel or materiel; and they affect objects differently within their area of influence.

2.14.2. When deployed in a static manner (e.g., elevated, and visible), the active vehicle barrier (AVB) will generally be considered physical security measures like cement barriers, bollards, or fencing. Additionally, when deployed in a dynamic manner, (e.g., activated by SF personnel in response to a perceived threat as a means of preventing unauthorized vehicle entry), AVBs when constructed in compliance with Unified Facilities Criteria standards will generally be considered non-lethal weapons. Entry controllers must be trained in AVB operations on installed systems prior to utilizing AVBs. **(T-0)**

2.14.3. Unit Standard Operating Procedures, tactics, and techniques may require adjustment to enable employment of non-lethal weapons and equipment for the success of specific missions.

2.14.4. **Techniques Training.** Air Force Career Field Managers will specify what non-lethal weapons and techniques training, if any, will be received by their respective AFSC. **(T-1)** Commanders will ensure personnel receive practical, performance based and scenario-driven use of force training every 12-months before authorizing individuals to employ non-lethal weapons. **(T-1)**

2.14.4.1. Users or organizations are not authorized to obtain or use non-lethal weapons, accessories, or associated equipment that are not approved. **(T-0)** The approved non-lethal weapons and accessories listing is located on the Security Management & Automated Resource Tracking Network (SMARTNet) at **https://usaf.dps.mil/teams/SMARTNet**.

2.14.4.2. Guidance for the employment of non-lethal weapons or techniques prior to being trained is provided in the SF Training Reference Guides or AFSC specific guidance as directed by the Air Force Career Field Manager. Approved lesson plans, tactics, techniques, and procedures for non-lethal weapons can be found on SMARTNet. Additionally, trainers may supplement guidance using the non-lethal electronic Tactics, Techniques, and Procedure Guides (eTTPGs) located at **https://jifco-nlw-ettpgs.org/**. **Note:** Air Force publications and policies take precedence when there is a conflict in guidance or procedure.

2.14.4.3. Each unit is responsible for providing instructors to train individuals on performing less-lethal techniques and (if appropriate) using non-lethal weapons. **(T-1)** Instructors must be graduates of one of the following: Basic Instructor Course; Principles of Instruction or be a previous "T" Prefix instructor (e.g., BMT/AETC/AU); Inter-service Non-lethal Individual Weapons Instructor Course; Prior RTC Instructor; Federal Law Enforcement Training Center Instructor Training Program; or Combat Arms Apprentice Course graduate and task certified on the NLW they are training per DAFMAN 36-2689, *Training Program*. **(T-1) Note:** SF will follow the guidance in DAFI 36-2646, *Security Forces Training and Standardization Evaluation Programs* for non-lethal instructor requirements. Non-lethal weapon instructor certification is valid for two-years.

2.14.4.4. Personnel must complete qualification training per AFI 36-2654 on the service weapon used to deploy non-lethal munitions, to include the non-lethal orders of fire. **(T-1)** This training only qualifies the individual on the weapon/munitions and does not meet non-lethal employment training requirements. Combat Arms personnel are authorized to teach weapons qualification courses, including any non-lethal munitions portions, as outlined in AFI 36-2654.

2.14.5. **Non-lethal Weapons Reporting Requirements.** Use the following format to report non-lethal weapon incidents if a US uniformed member, DAF civilian employee, or DoD contractor employs/discharges a non-lethal weapon while in the performance of official duties (to include training mishaps). **(T-2)**

2.14.5.1. When employment or discharge of a non-lethal weapon involves an injury, fatality, publicity, or meets the reporting guidelines in AFMAN 10-206, report the incident as follows:

2.14.5.2. Report incidents using OPREP-3 message format; the OPREP-3 report format will be used even if the event does not meet the reporting guidelines in AFMAN 10-206. **(T-1) Note**: **Attachment 2** provides commanders and supervisors a guide to ensure critical actions are taken immediately following a non-lethal weapon employment and/or firearm discharge firearms discharge.

2.14.5.3. Send messages to AF/A4S and AFSFC/FP within 24-hours of the incident using Report Control Symbol AF/A3OO. Messages may be sent via e-mail to: **AFSFC.FGC.Warfighter_support@us.af**. Designate report's priority, emergency status code C1, and continue reporting during emergency conditions. **(T-1)**

2.14.5.4. Send information copies to HAF functional manager and to intermediate SF headquarters (MAJCOM/FLDCOM or NAF) staff and functional manager of the unit involved. **(T-1)**

2.14.5.5. Send a written follow-up report via the **Attachment 2** template within 30 calendar days of the non-lethal weapon employment and/or firearm discharge to all original addressees and AFSFC/Force Protection Intelligence via e-mail at **afsfc.sfp@us.af.mil**. Criminal investigations by SF Investigations or AFOSI does not alleviate the need for a firearms discharge report. **(T-1)**

2.14.5.6. **(Added-USAFE-AFAFRICA)** Commanders will ensure all non-lethal weapon employments/discharges are reported within 24-hours through their installation commander to HQ USAFE-AFAFRICA/A4S. Send a lessons learned report to USAFE-AFAFRICA/A4S within 30 calendar days of the discharge using the format shown in **Attachment 5**. **(T-2)**

2.14.6. When employment or discharge of a non-lethal weapon does not involve an injury, fatality, publicity, or meet the reporting guidelines in AFMAN 10-206, report the incident according to MAJCOM/FLDCOM or Field Operating Agency instructions. **(T-1)** Activation of AVBs due to perceived threats will be annotated in the AFSFC Installation Access Control Point Tracker on the AFSFC SharePoint. **(T-1)**

Chapter 3

USE OF FORCE GUIDANCE

3.1. Use of Force Procedures. The use of force by DAF personnel must comply with federal laws, DoD and DAF policy, and applicable international agreements. **(T-0)** The goal for the use of force is to gain control of the situation or individual(s) encountered, when reasonable. Uniformed members, DAF civilian employees, or DoD contractors will use only that force which is reasonably necessary to accomplish their duties in conformity with the Constitution of the United States, federal law and regulations, and DoD policy. **(T-0) Note**: In situations where federal law and DoD policy conflicts with applicable state law regarding use of force, Air National Guard personnel in Title 32 Status performing fulltime National Guard duty, inactive duty for training or not otherwise in Title 10 status, will adhere to state law. **(T-0)**

3.1.1. Personnel armed in accordance with this instruction, are authorized to use force in the performance of their official duties. When force is necessary to perform official duties, personnel will use a reasonable amount of force to gain control of the situation or individuals(s) encountered and will not use excessive force. The reasonableness of any use of force is determined by assessing the totality of the circumstances that led to the need to use force. **(T-1)** These official duties may include, but are not limited to: searches, seizures, and apprehensions; defense of assets vital to national security or inherently dangerous; preventing a person from self-injury; self-defense and the defense of others; preventing prisoner escapes; dissolving riots and other forms of civil unrest when directed by proper authority; maintaining good order and discipline on an installation; the investigation of violations of the UCMJ; and overcoming resistance to lawful orders. **(T-0)**

3.1.2. Personnel may use reasonable force while conducting official duties to obtain compliance from an individual or individuals who pose a threat, as discussed below, in order to meet lawful objectives.

3.1.3. Personnel may exercise self-defense in response to a hostile act or demonstration of hostile intent, unless lawfully directed otherwise by their unit commander in the circumstances prescribed in Chairman of the Joint Chiefs of Staff Instruction (CJCSI) 3121.01B, Enclosure L, Paragraph 4.a.

3.1.4. **(Added-USAFE-AFAFRICA)** Defense Force Commanders (DFC) will work in close consultation with the local SJA in order to identify international agreements and host nations laws while developing local procedures.

3.2. Objective Reasonableness and Totality of Circumstances. Force is used as a last resort, and the force used must be the minimum necessary to accomplish the legitimate law enforcement purpose. When time and circumstances permit, a threatening force may be warned and given the opportunity to withdraw or cease threatening actions, as appropriate and consistent with the lawful objectives or mission requirements of armed personnel. Armed personnel may have an obligation to apprehend rather than permit an individual to withdraw. The force used will be objectively reasonable. **(T-0)** Individuals performing law enforcement or security duties draw from a range of options, ranging from simple displays of authority, verbal and non-verbal communication to the application of various levels of non-lethal force, and ultimately to the use of deadly force. Circumstances dictate the appropriate response, and those circumstances, as well as the choice of

response, are subject to close scrutiny. In some cases, force, including deadly force, may be the only option available to respond to a hostile act or hostile intent. Deadly force is to be used only when all lesser means have failed or cannot reasonably be employed. The use of force must be objectively reasonable in intensity, duration, and magnitude based upon the totality of the circumstances to counter the threat. **(T-0)**

3.2.1. Standard for the Use of Force. In *Graham v. Connor, 490 U.S. 386* (1989), the US Supreme Court established the standard of "objective reasonableness" pursuant to the US Constitution, Amendment IV (Fourth Amendment) as the appropriate standard for assessing the use of force in the context of governmental use of force. Objective reasonableness is based on the facts and circumstances known at the time of the incident, which, in the case of *Graham v. Connor*, involved a police officer making an arrest or other seizure of a person. The principle, however, is applicable to the actions of law enforcement or security personnel in a domestic Department of Defense context. The Court explained its application in these terms: *"The 'reasonableness' of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight… The calculus of reasonableness must embody allowance for the fact that police officers are often forced to make split-second judgments – in circumstances that are tense, uncertain, and rapidly evolving – about the amount of force that is necessary in a particular situation… [T]he 'reasonableness' inquiry…is an objective one: the question is whether the officers' actions are 'objectively reasonable' in light of the facts and circumstances confronting them, without regard to their underlying intent or motivation…"* The facts and circumstances known at the time the force was used will be the basis for the determination of reasonableness. **(T-0)**

3.2.2. Reasonableness in Use of Force. The objective reasonableness standard from *Graham v. Connor* has factors that the courts consider in applying that standard includes: the severity of the crime or behavior alleged; whether the subject has a weapon; the duration of the subject's behavior and whether it is ongoing, whether the subject is actively resisting, whether the subject can be permitted to withdraw from the situation, or whether the subject must be apprehended or stopped; the number of subjects involved; the size, age, and condition of the subject in relation to the law enforcement official; any known violent history of the subject; any known mental or psychiatric history of the subject; whether the subject is known or believed to be under the influence of alcohol or drugs; whether the law enforcement official first used a display of authority, attempted verbal communication and de-escalation techniques, and used lesser forms of force; the amount of force used, including whether appropriate non-lethal weapons are available; whether any innocent bystanders are present who could be harmed if force is used or not used; the existence of official guidance regarding the situation; and whether the force applied resulted in injury and the extent of any injury.

3.3. Using Force. To ensure that a decision to use force will be judged as reasonable, personnel base their decision on their perception of the subject's actions and the totality of circumstances. The subject's actions and the practical considerations involved in a situation are major factors in determining the type of force DAF personnel may lawfully use in order to gain or maintain control of the subject or the situation.

3.4. Escalation or De-escalation of Force. The primary goal of using force is to gain and maintain control of the subject(s). Ideally, each enforcement encounter results in a balanced utilization of force flowing in the form of escalation, stabilization, or de-escalation. The utilization of force is based upon the actions or threats presented and the subject's degree of compliance or

noncompliance. The application of force may be based primarily on the perceived actions of the suspect within the totality of the circumstances. DAF personnel's response to a subject's perceived actions must be guided by objective reasonableness when effecting control. **(T-0)**

3.5. Tools, Tactics and Timing. Application of force encompasses three main elements of action and assessment. These elements are tools, tactics, and timing.

3.5.1. Tools. Tools are the mechanical, physical, or mental resources we have in order to gain or regain compliance. These include verbal skills, control techniques, non-lethal weapons (e.g., conducted energy weapon, baton, military working dog, pepper spray), and lethal weapons.

3.5.2. Tactics. Tactics are the applications of these tools in the form of techniques and procedures. DAF personnel must incorporate the tools into strategies to accomplish an apprehension, such as keeping a subject's hands/palms visible at all times and the proper use of cover or concealment. **(T-3)**

3.5.3. Timing. Timing is the correlation of tools and tactics to produce the timely and effective application of the appropriate objectively reasonable force required to establish and maintain lawful control.

3.5.4. Applying Force with the Appropriate Tool/Tactic. The following sections explain use of force tactics and tools available to personnel based on the subject's actions, Officer perception, and response. For more specific information refer to SF Training Reference Guides.

3.6. Officer Perception. Per *Graham v. Connor*, the Fourth Amendment standard of "objective reasonableness" does not lend itself to a "precise definition or mechanical application." For example, if LEO/Base Defense personnel perceive the three elements listed further below as guidelines in determining whether to employ or escalate force (they are not elements, defined in law), it is more likely that their actions will be considered objectively reasonable.

3.6.1. The three elements are:

3.6.2. Ability-Capability. This element addresses the ability-capability of the subject to carry out a threatened action. Personnel must perceive the person proposing the action or threat is capable of performing the action.

3.6.3. Opportunity. This element indicates the action or threat personnel perceive is imminent but not necessarily instantaneous. The subject must be in a position where he/she can carry out the act or threat.

3.6.4. Intent. This is the apparent or perceived mental state of the subject initiating an overt act (words or deeds) in the furtherance of a threat, action, or crime.

3.7. Subject Action. Officers' perception of the subject's capability, opportunity, and intent may inform the degree of force to be employed to achieve his/her objective. In the same way that the standard of objective reasonableness cannot be defined mechanically, subject actions cannot be defined mechanically but can be structured into behavioral categories to promote understanding of the concept. Officers must be aware that initial physical contact with a suspect can be unpredictable, and officers must exercise caution.

3.7.1. Compliant (Cooperative). The subject complies with Officers' objective.

3.7.2. Resistant (Passive). The subject exhibits the preliminary level of noncompliance and requires some degree of physical contact in order to obtain compliance. The subject is ignoring the verbal commands but has taken no action to indicate physical resistance towards personnel.

3.7.3. Resistant (Active). The subject exhibits physical or mechanical defiance to the Officers' control. Pushing or moving away from the officer, indicating they do not intend to comply with SF command.

3.7.4. Assaultive (Bodily Harm). The subject possesses the combination of intent, opportunity, and capability for physical aggression that the officer perceives to be a less than lethal threat to themself or others.

3.7.5. Assaultive (Grievous Bodily Harm/Death). The subject possesses the combination of intent, opportunity, and capability to inflict death or serious bodily harm to personnel.

3.8. Officer Response. In responding to the subject's actions, the goal is to remove the relevant threat. Response tactics employed may include verbal or physical controls, less than lethal weapons and techniques, deadly force, or all of the above. While the force used may ordinarily be the minimum necessary, there is no requirement that personnel utilize the least intrusive or minimum force in all cases, as long as the force is reasonable in intensity, duration and magnitude.

3.8.1. Whenever possible, officers may attempt to generate voluntary compliance without resorting to physical force. Some communication techniques and skills for obtaining voluntary compliance that can be utilized are ask, set context, present options, and act.

3.8.2. When faced with a subject, the following illustrates how a subject's resistance or actions can correlate to the force applied by authorized individuals. It is not the intent to imply that use of force options are limited based on any single factor.

3.8.3. Compliant (Cooperative). The individual uses authoritative appearance, nonverbal actions and verbal requests and commands, handcuffing and control holds.

3.8.4. Resistant (Passive). The individual uses strength to take physical control, including lifting, carrying, pain compliance control holds, takedowns and techniques to direct movement or immobilize a subject.

3.8.5. Resistant (Active). The individual uses control holds and techniques to control the subject and situation, use of personal body weapons to gain advantage over the subject.

3.8.6. Assaultive (Bodily Harm). The individual uses devices or techniques to secure compliance and ultimately gain control of the situation, use of personal body weapons in self-defense and to gain advantage over the subject.

3.8.7. Assaultive (Grievous Bodily Harm/Death). The individual utilizes firearms or any other available weapon or action in defense of self and others to stop the threat.

3.8.8. Personnel must use the force option(s) appropriate for the situation as conditions may change rapidly. Personnel must continually reevaluate the subject's actions and the practical considerations involved in the situation and must be prepared to transition as needed to the appropriate force options (de-escalate or escalate), to always remain within the bounds of conduct which is objectively reasonable under the circumstances.

3.9. Excessive force. A board, court, or other authority may find personnel to have used excessive force when the intensity, duration, and magnitude of the force used was greater than that

which was objectively reasonable under the totality of the circumstances confronting the officer at the time that the force was used. If an officer's actions are found to be excessive, their actions may be unlawful and may be addressed as a violation of the UCMJ Article most closely aligned with the actions of the officer.

3.10. Use of Deadly Force. As with nonlethal force, the use of deadly force must meet the "objectively reasonable" standard. To be considered objectively reasonable deadly force must only be used when all lesser means of force have failed or cannot reasonably be employed.

3.10.1. When deadly force is used, personnel must be able to articulate why it was objectively reasonable based on his/her perception of the threat and the totality of the circumstances. **(T-0)** Deadly force is authorized under the circumstances prescribed in the Standing Rules for the Use of Force (CJCSI 3121.01B, Enclosure L). Namely, when exercising the inherent right of self-defense or, defense of others; and in relation to assets vital to national security, dangerous property, and national critical infrastructure (as those terms are defined in the CJCSI).

3.10.2. Additionally, deadly force is authorized to prevent the commission of a serious offense that involves an imminent threat of death or serious bodily harm, and to prevent the escape of a prisoner, provided there is probable cause to believe that the escapee has committed or attempted to commit a serious offense, as contemplated in CJCSI 3121.01B, Enclosure L. Finally, deadly force is authorized when deadly force reasonably appears necessary to arrest or apprehend a person who, there is probable cause to believe, has committed a serious offense. **Note**: Personnel must not needlessly put themselves in a situation in which they must use deadly force to protect themselves (i.e., stepping into the lane of a fleeing vehicle in an attempt to stop them). This is referred to as officer created jeopardy.

3.10.3. Defending Against Animals. Deadly force may be directed against vicious animals, when necessary, in self-defense or in defense of others.

3.11. Special Considerations.

3.11.1. **When feasible, give an order to "HALT" before discharging a firearm.** The safety of innocent bystanders may be a relevant consideration when determining whether the employment of deadly force is excessive, or objectively reasonable. Warning shots are prohibited within United States territory. **(T-0)** Outside United States territory, do not fire warning shots unless specifically authorized in relevant theater directives, Rules of Engagement or as directed by the CCDR.

3.11.2. Chemical, Biological, Radiological, Nuclear, and High-Yield Explosive Operations. During protection and recovery operations involving nuclear weapons or lethal chemical agents, the safety of innocent bystanders or hostages may be a relevant consideration in determining whether the employment of deadly force is excessive, or objectively reasonable. However, their presence must not deter individuals or commanders from taking appropriate measures, consistent with the Standing Rules for the Use of Force, and the principles discussed above. **(T-0)**

3.11.3. Host Nation Laws and Status of Forces Agreements. Commanders may impose further restrictions on the use of deadly force consistent with applicable local or host-nation laws, status of forces agreements and other international agreements. Such restrictions must not unduly compromise United States national security interests and must be published in local installation instructions. **(T-0)**

3.12. Use of Less-Lethal Force. Less-lethal force is subject to the same standards of objective reasonableness and totality of circumstances as deadly force.

3.13. Vehicles. Firearms will not be fired solely to disable a non-threatening moving vehicle. **(T-0)** Personnel who have reason to believe that a driver or occupant of a vehicle poses an imminent danger of death or serious physical injury to themselves, or others may fire at the driver or an occupant only when such shots are reasonable to avoid death or serious physical injury to the officer or another.

Chapter 4

SECURITY FORCES' RELIABILITY STANDARDS

4.1. Overview. The DAF executes DoDM 5210.42, *Nuclear Weapons Personnel Reliability Program (PRP)*, using a Personnel Reliability Assurance Program (PRAP) comprised of two elements. PRAP is an overarching designation for the Air Force's two nuclear reliability programs, the PRP, and AUoF. SF personnel (AF Specialty Codes 31PX and 3P0X1) will meet the requirements of DoDI 5210.42, *DoD Nuclear Weapons Personnel Reliability Assurance*, DoDM 5210.42_DAFMAN 13-501, and this instruction. **(T-0)** SF personnel holding the 31P or 3P0 series AFSC require continuing evaluation for reliability to perform armed duties to include security and law and order duties. This chapter outlines the AUoF requirements for SF personnel's suitability to perform the force protection mission and the responsibilities of support agencies to ensure mission success. Throughout this chapter, any section that specifies a commander's responsibility, unless otherwise stated, includes a designated representative in the absence of the commander.

4.1.1. Commanders of SF Personnel. Commanders are responsible for determining suitability to bear arms based on information provided by the individual, supervisors, medical personnel, or the individual's peers while using the suitability factors in DoDM 5210.42_DAFMAN 13-501 as a guideline. **(T-1)** Commanders will designate in writing the individual(s) who will perform AUoF monitoring duties. This memorandum will be provided to the installation PRAP monitor.

4.1.2. Squadron Arming Use of Force Monitors. The AUoF monitor(s) will be authorized to receive medical notifications potentially impacting an individual's authority to bear arms on behalf of the commander. These personnel must receive Privacy Act of 1974 (5 U.S.C. § 552a, *Records Maintained on Individuals*) training before receiving notifications. **(T-1)**

4.1.2.1. AUoF Monitors must complete the Air Force myLearning online PRAP course V2.0 within 15-calendar days of being selected for the position. **(T-3)**

4.1.2.2. AUoF Monitors are not authorized to make permanent or temporary arming withdrawal determinations on behalf of the commander. **(T-1)** The servicing armory, installation PRAP monitor and the MTF will, at all times, maintain an appointment letter designating the AUoF monitor. **(T-1)** The AUoF Monitor(s) will immediately notify the servicing armory verbally of all Temporary Arming Withdrawals (TAW), Permanent Arming Withdrawals (PAW), and Arming Reinstatements immediately upon approval from the Commander or designated representative. **(T-1)** Within 72 hours, the AUoF Monitor(s) will provide a commander or designated representative endorsed (wet or digital) memorandum that captures all TAW, PAW, or Reinstatements. This memorandum is not an arming authorization roster, it simply serves as a written communication to the servicing armory, about the arming status of the individuals listed**.**

4.1.2.3. The servicing IPO will notify the AUoF monitor of DISS incidents that may require immediate notification to the commander for PAW or permanent arming withdrawal determination.

4.1.2.4. The AUoF monitor will collaborate with the unit security assistant on any information that may impact security clearance or require reporting to the counter-insider threat program. **(T-1)**

4.1.2.5. The AUoF monitor will collaborate with the unit drug demand and reduction monitor. **(T-1)**

4.1.2.5.1. Air Force Arming and Use of Force (AUoF) Program personnel performing nuclear duties must complete annual calendar year drug testing. **(T-0)**

4.2.1.5.2. AUoF Program personnel not performing nuclear duties fall under the installation's Drug Demand Reduction Program randomized testing cycle.

4.1.3. MTF Commander/Director. Ensure immediate notification to the patient's commander, or command representative designated when the treating provider identifies or is made aware of a condition(s) during or after the medical encounter (i.e., appointment or consultations) capable of impairing an individual's reliability to safely perform armed duties. **(T-1)**

4.1.4. Force Support Squadron (FSS) Commanders/Directors. Assists with the administrative process to ensure timely actions from the units and the Medical Treatment Facility (MTF), to include installation PRAP monitor responsibilities when needed and to ensure an individual does not out process until all AUoF requirements are met.

4.1.5. Installation PRAP monitors. Provide training required by DoDM 5210.42_DAFMAN 13-501, for base agencies that support AUoF, commanders who oversee units with a AUoF program, and squadron appointed AUoF monitors. **(T-0)**

4.1.5.1. Conduct a program compliance review of all units that have a AUoF program or provide support to AUoF programs on a frequency determined by the Installation Commander.

4.1.5.2. Provide AUoF monitors with a listing of personnel under the AUoF program.

4.2. Essential Elements. Essential elements of AUoF are listed in the following paragraphs:

4.2.1. Individual must be a US Citizen. **(T-0)** In order to maintain the clearance required to retain the AFSC of 31P or 3P0, Security Force individuals must be US Citizens as outlined in DoDM 5200.02, *Procedures of the DoD Personnel Security Program (PSP)*. **(T-0)**

4.2.2. Personnel require and must maintain Secret clearance eligibility for AFSC 31P or 3P0. **(T-1)**

4.2.2.1. All SF personnel, whether assigned to a unit with a nuclear or non-nuclear mission, must maintain a security clearance eligibility that has been favorably adjudicated within the last 5 years per DoDM 5210.42_DAFMAN 13-501. **(T-0)** Personnel will complete an SF-86 (or eApp) every 5 years. The 5-year periodicity is based off the most recent of these three dates: Background investigation closed date, SF-86 signature date, or Continuous Enrollment date. **(T-0)**

4.2.2.2. Personnel with a security investigation exceeding 5 years must submit a new SF-86. **(T-0)** Individuals may perform nuclear duties on an interim basis contingent upon the SF-86 being submitted at the Defense Counterintelligence and Security Agency (or the Department of Defense designated investigative service provider), and the commander has documented a review of the completed security questionnaire and is satisfied the information provided does not suggest unreasonable risk.

4.2.3. Personnel must be fully qualified. **(T-0)** Successful completion of SF technical training and qualifying award of the entry-level 31P or 3P0 AFSC is required. **(T-1)** SF Commanders

may waive completion for AFSC 31P, if the individual is scheduled to attend technical training, and meets all other essential elements in this chapter. Personnel must meet all requirements to retain their AFSC as outlined in the DAFOCD or DAFECD. **(T-1)**

4.2.4. Reliability of the individual must be verified prior to assignment. **(T-0)**

4.2.4.1. Reliability verification is completed when the commander signs the assignment selection notification, Report on Individual Personnel (RIP). This form shows the selected AFSC in which the individual was selected. The signature on this form signifies the losing commander's verification that the individual continues to meet the suitability criteria outlined in this instruction. **(T-1)** However, SF Commanders will not allow personnel holding a 31P or 3P0 AFSC who cannot perform armed duties to depart for permanent change of duty station. **(T-1)** The commander submits the RIP to the losing Military Personnel Flight (MPF) within ten duty days of the members assignment notification date. **(T-1)** The signature on the RIP signifies the losing commander's verification that the individual continues to meet the suitability criteria outlined in this instruction. The RIP requires the signature of the commander, or the signature of a person authorized to sign the arming roster. **(T-1)** Signature authority may not be delegated to an administrative staff. **(T-1)** Losing commanders continue to monitor the suitability of the individual to retain the AFSC until the individual signs into the gaining unit. **(T-1)** If the losing commander intends to withdraw the AFSC, cancel the assignment by notifying the owning assignments manager through the losing MPF. **(T-1)**

4.2.4.2. SF personnel returning to a Duty AFSC of 31P or 3P0 after serving in another AFSC must be rescreened by the losing commander against the suitability criteria for SF in the DAFOCD or DAFECD. **(T-1)** This includes but is not limited to SF personnel returning from Developmental duties, permanent change of duty assignments, and special duty assignments. Document this action in accordance with the Personnel Processing Code instructions in the assignment notification.

4.2.4.3. Officers exercising command authority of SF personnel assigned to headquarters staff positions above the wing level, follow the procedures in **paragraph 4.2.4.1** and **paragraph 4.2.5.3.3** prior to the Airman's change in assignment, unless the staff can prove compliance with all continuing evaluation standards in **paragraph 4.2.5** **(T-1)** If continuing evaluation was maintained throughout their headquarters assignment, only the procedures in **paragraph 4.2.4.1** apply for assignment processing. **(T-1)**

4.2.5. Personnel must be under continuing evaluation. **(T-0)** Continuing evaluation requires the attention of a combined team of commander, medical providers, supervisors, Airman's peers, the Airman, and other support agencies. **(T-0)**

4.2.5.1. Commanders of SF Personnel.

4.2.5.1.1. Commanders are responsible for determining suitability to bear arms based on information obtained through continuing evaluation. **(T-1)** Information received from medical providers, supervisors, Airman's peers, the Airman and other support agencies will be considered when making a determination to reinstate or withdraw authority to bear firearms. **(T-0)**

4.2.5.1.2. Weekly Mission Capability Review (each Unit Training Assembly for non-full time Category A unit Air Force Reserve/Air National Guard personnel). The

commander will conduct a weekly review of the "Temporary Arming Withdrawal" status of assigned personnel with known mental, physical, behavioral, or emotional elements that affect suitability to bear arms. **(T-3)** Additionally, commanders will review all personnel on duty limiting condition profiles. **(T-3)** This mission capability review must include the First Sergeant (or commander-designated NCO in the absence of the First Sergeant), Senior Enlisted Leader, and AUoF Monitor. Commanders should include section leaders as necessary. Include others as deemed appropriate by the commander, but careful consideration must be made to ensure Personal Identifiable Information, including information protected by the Privacy Act of 1974 and medical information protected by Public Law 104-91, *Health Insurance Portability and Accountability Act of 1996 (HIPAA)*, is properly controlled. **(T-0)** Commanders may ask military medical providers with pertinent knowledge of the Airman's medical history to participate in Mission Capability Reviews.

4.2.5.1.3. Commanders will review the retention criteria listed in the DAFOCD or DAFECD and take appropriate action to withdraw AFSC from personnel who do not meet retention criteria. **(T-1)** If the commander intends to withdraw the AFSC for mental, physical, or emotional reasons, the commander may notify the Primary Care Manager to evaluate for retention of the Airman in their AFSC as outlined in the DAFOCD and the DAFECD. If the Airmen does not meet AFSC retention standards for medical reasons, the Primary Care Manager will document in the Aeromedical Services Information Management System (ASIMS) by completing an AF Form 422, Notification of Air Force Member's Qualification, for communication to the commander. **(T-0)** If the commander is concerned about retention standards for mental, physical, or emotional reasons and it appears the condition will require lengthy treatment, or the Airman will be unable to perform duties for a protracted period of time, the commander will Refer the Airman's case to the Airman Medical Readiness Optimization (AMRO) Board through the "refer to AMRO" tool in ASIMS or directly with the AMRO Chairman. **(T-0)**

4.2.5.1.4. Commanders must be aware of those SF personnel assigned that are currently coded as PRP disqualified or permanently decertified. **(T-0)**

4.2.5.1.5. The following conditions will require permanent arming withdrawal and a withdrawal of AFSC:

4.2.5.1.5.1. An individual diagnosed with alcohol use disorder who subsequently fails to complete or fails to participate in the prescribed rehabilitation program or treatment regimen. **(T-0)**

4.2.5.1.5.2. An individual found to be involved in the unauthorized trafficking, cultivation, processing, manufacturing, or sale of any controlled or illegal drug, including cannabis-based products. **(T-1)**

4.2.5.1.5.3. An individual found to have ever used a drug that could cause flashbacks. **(T-0)**

4.2.5.1.5.4. An individual diagnosed with severe substance use disorder. **(T-0)** **Note:** For the purposes of this instruction, alcohol related disorders are defined separately from other substance use disorders**.**

4.2.5.1.5.5. Revocation of the individual's security clearance. **(T-0)**

4.2.5.1.5.6. Loss of confidence by the certifying official in the reliability of the individual. **(T-0)**

4.2.5.1.6. Personnel who are determined to be disqualified and currently possess their PRP code will be placed on the TAW until the code can be removed in accordance with DoDM 5210.42_DAFMAN 13-501, or the Airman's AFSC is withdrawn, and they are removed from the Master Arming List. **(T-0)** Commanders will have a process in place to ensure personnel returning from Developmental Special Duties or otherwise duties outside of the 31P or 3P0 AFSC are rescreened during unit in-processing for PRP disqualifying codes. **(T-1)**

4.2.5.2. Medical Providers.

4.2.5.2.1. Authorized treating providers include independent duty medical technician, registered nurse and any credentialed provider in accordance with DoDI 6490.08, *Command Notification Requirements to Dispel Stigma in Providing Mental Health Care to Service Members*, must be working within their standardized protocols and privileges and will ensure immediate notification to the individual's commander, or designated command representative, when the treating provider identifies a condition(s) impairing a SF individual's reliability to safely perform his/her duties. **(T-0)** Immediate notifications are intended to eliminate the opportunity for an individual to be issued a firearm before the SF commander or designated command representative can make an authority to bear arms determination. Release of Protected Health Information to the chain of command will be in accordance with Military Command Exception rules in the HIPAA and DoDM 6025.18, *Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DOD Health Care Programs*. **(T-0)** The treating provider will provide enough information to the SF Commander or designated command representative to enable informed decisions. Based on feedback from the treating provider, the commander must decide whether the individual is fit for SF duties and determine the necessity to withdraw temporarily or permanently the individual's authority to bear firearms. **(T-1)** Refer to AFMAN 71-102 regarding firearms prohibitions surrounding mental health issues.

4.2.5.2.2. Use of prescription medication does not per se disqualify individuals from bearing firearms. However, the treating provider or a representative of the servicing medical facility will immediately notify the Airman's commander after a medical encounter/appointment occurs when a psychoactive medication, narcotic, or sedating drug is prescribed that could negatively affect the Airman's cognitive ability to make a critical decision with a firearm (e.g., a split-second decision involving deadly force). **(T-1)**

4.2.5.2.3. Sexual assault victims carrying the 31P or 3P0 AFSC are eligible for both the Restricted and Unrestricted reporting options per DoDI 6495.02, *Sexual Assault Prevention and Response (SAPR) Program Procedures*. If electing Restricted reporting, the victim may disclose to the medical provider any factors that could have an adverse impact on the victim's suitability to bear firearms, their safety, or the safety of others. If necessary, the medical provider may convey to the victim's unit commander any possible adverse duty impact related to the victim's medical condition

and prognosis. However, such circumstances do not otherwise warrant disclosure of a Restricted report, unless disclosure is necessary to prevent or mitigate a serious and imminent threat to the health or safety of an individual. The medical provider will recommend to the victim's commander that the individual should be placed on a TAW roster, without revealing confidential communication related to the sexual assault, thus preserving the Restricted Report. **(T-0)**

4.2.5.3. SF Personnel.

4.2.5.3.1. Suitability to perform SF duty is critical to a successful arming program. Personnel are required to notify their commander immediately when they believe they are not physically, emotionally, or mentally fit to bear arms. Prior to receiving medical, mental health, or support agency assistance, personnel will inform the provider or counselor of their requirement to bear firearms as part of their official duties. **(T-1)** This information aids the medical provider or counselor in assessing the Airman's suitability to perform armed duties. Individual will notify their commander, or appropriate person in their chain of command, of on-or-off installation medical and mental health treatment or prescribed medications that may affect or negatively impact their judgment, to include telehealth. **(T-1)** Over-the-counter medication will only be taken in accordance with instructions provided on the original container unless otherwise directed by the treating provider. **(T-1)** Restrict use of over-the-counter medication in accordance with **paragraph 1.7.2**. **(T-1)** Personnel are not required to provide additional information as to the reasons they believe they are not fit to bear arms if they will incriminate themselves. **(T-0)** Supervisors, First Sergeants, and Commanders should consider, based on circumstances, whether rights advisement is necessary. The conversation should be focused on resources available to the individual.

4.2.5.3.2. At any time prior, during, or after performing armed duty, all SF have an obligation to report mental, physical or emotional indicators of themselves or another SF personnel that may cause a negative impact on people, resources or mission. **(T-0)** Any Airman can make a recommendation to temporarily withdraw someone's authority to bear firearms when another Airman verbalizes or displays behavior deemed unsafe or unsuitable for armed duty. Opportunities to observe these indicators for SF personnel exist prior to, during, and after performing armed duty. Opportunities include contact with 1) the armorer while arming for duty or turning in, 2) clearing barrel supervisor, 3) flight commander, flight chief or supervisor during shift change, and 4) assigned team leader or Airman. Suitability factors that may affect reliability to bear arms are listed in DoDM 5210.42_DAFMAN 13-501. Follow procedures in **paragraph 2.3.1**. to TAW to bear arms. **(T-1)** Only the commander, or arming authority, can reinstate an Airman's authority to bear firearms. **(T-1)** Document the reinstatement in accordance with **paragraph 2.4**. **(T-1)**

4.2.5.3.3. Extended absence from SF duties. Personnel who exceed 75 calendar days without performing official SF duty will be removed from arming rosters. **(T-1)** Absence from SF duties is defined as a period of time when SF personnel whose duty AFSC is 31P or 3P0, is not under continuing evaluation by their SF commander or designated command representative. Examples of extended absences are 75 calendar-day gaps such as extended leave, training, professional military education, deployments requiring duties other than armed SF duty, and guard and reserve SF not reporting for

Unit Training Assembly, or not on orders (to include those not scheduled to be on Title 10 federal active duty status for a period of 75 days). Upon return from the extended absence, the commander will interview the individual in accordance with **paragraph 4.2.8**. **(T-1)** Prior to the interview, the Airman will complete the questionnaire at **Attachment 4** and submit the form to the commander. **(T-1)** The commander will review the questionnaire and discuss the information during the interview. **(T-1)** The individual will not be placed on the arming roster until the questionnaire and the interview are complete. **(T-1) Notes:** ANG units that are conducting quarterly drills may submit a waiver in accordance with the ANG Classification Waiver Guide.

4.2.5.3.3.1. The questionnaire will be kept on file for the duration of the tour of duty or until the individual permanently changes station, separates, or retires. **(T-1)**

4.2.5.3.3.2. The responses elicited by the questionnaire, may not be used as the basis for any punitive purpose including nonjudicial punishment, court-martial, or discharge characterization. The responses are requested for the purpose of determining fitness to bear arms and for no other purpose. Commanders may use alternate means of determining fitness, including when appropriate, a discussion with the previous supervisor, a commander-directed mental health examination (i.e., fitness for duty) or commander-directed urinalysis (in accordance with Rule 313, Military Rules of Evidence, *Inspections and Inventories in the Armed Forces*). If an individual declines to respond to any question(s) on the questionnaire, such a decision may result in a determination that the individual is not fit to bear arms.

4.2.5.3.3.3. This limited protection for the individual does not apply to personnel who are already under investigation or pending action for the matter they disclose. For example, the limited protection does not apply if the individual has been apprehended for drug involvement; placed under investigation for drug abuse; ordered to give a urinalysis with pending results; or already advised of a recommendation for administrative separation.

4.2.5.3.3.4. This limited protection for self-incrimination does not apply to the introduction of impeachment or rebuttal evidence in a court proceeding or to discipline derived from independently acquired evidence. The information may be used by the person's chain of command for administrative and regulatory purposes, potentially including security clearance adjudication, readiness and deployability purposes, assignments, and potentially separation from the service.

4.2.6. Personnel must have a medical evaluation. **(T-0)**

4.2.6.1. SF personnel must complete Preventative Health Assessments annually. **(T-1)** SF personnel will also complete the web questionnaires, and they will be reviewed within five duty days by the medical community. Exceeding the annual Preventative Health Assessment date does not necessarily mean an individual is unreliable, but every effort will be made to complete within the annual timeframe. **(T-3)**

4.2.7. Security Forces personnel must have a personnel file review in accordance with DoDI 5210.42 and DoDM 5210.42_DAFMAN 13-501. **(T-0)**

4.2.7.1. Losing commander responsibilities. For purposes of this essential element, the check for suitability factors is verification an unfavorable information file does not exist

prior to a SF Airman's assignment. The losing commander is responsible for affirming in writing that the Airman does not have an active unfavorable information file and will review in detail the individual's personnel file, other official records, and information locally available on their behavior, conduct, and reliability. **(T-0)** The losing commander accomplishes this attestation by signing the individual's assignment notification RIP. **(T-1)** This form requires the signature of the commander, or the signature of a person authorized to sign the arming roster. **(T-1)** It cannot be delegated to administrative staff personnel. **(T-1)** Below the signature, the losing commander writes either "unfavorable information file: NO" or "unfavorable information file: YES", indicating the existence or intent to establish an unfavorable information file on the Airman. **(T-1)** If an unfavorable information file exists, the losing commander must contact the gaining commander within 14-calendar days of the Airman's assignment notification date to discuss the information in the unfavorable information file and whether the affected member can conduct AUoF duties. **(T-1)** If the losing commander is in the process of establishing an unfavorable information file on the Airman or elects to establish an unfavorable information file after submitting the signed assignment selection notification, communicate that information to the gaining commander. **(T-1)** Document the communication in writing using the format in **Attachment 3** and submit to the losing MPF. **(T-1)** If the gaining commander does not accept the Airman for assignment, the local MPF at the losing unit must contact the owning assignments manager to cancel the assignment. **(T-2)**

4.2.7.1.1. Nuclear capable Air National Guard units assessing personnel via Palace Chase, state-to-state transfers, or Air Force Reserve to Air National Guard transfers will utilize existing AF Form 1288, *Application for Ready Reserve Assignment*. **(T-1)**

4.2.7.1.2. For Palace Front applicants, all requirements annotated in the previous paragraph apply. Further, the gaining squadron will contact the losing squadron to ensure that an unfavorable information file does or does not exist and will be annotated on the AF Form 1288. **(T-1).** If an individual is entering with regular component experience but has a break in service, an unfavorable information file does not apply.

4.2.7.2. Gaining Commander Responsibilities. The gaining commander receives an assignment allocation notification at the same time as the losing commander receives the assignment selection notification. If the gaining unit identifies an unfavorable information file code on the Airman's allocation notification and is not contacted by the losing unit within 14 calendar days of the assignment notification date, the gaining MPF may contact the losing MPF. The gaining commander reviews the information provided by the losing commander. **(T-1)** The gaining commander may consider any personnel files locally available that assist the commander in making an informed judgment on the reliability of the individual. After a review of the unfavorable information file and other pertinent information, the gaining commander must decide to accept or reject the Airman's assignment within 30 calendar days from the Airman's assignment notification date. **(T-1)** Document the decision in writing using the format in **Attachment 3** **(T-1)** The gaining commander returns the dual signed memorandum to their local MPF Career Development Section who in turn communicates the decision to the losing commander. **(T-1)** If the gaining commander chooses to accept the Airman, the gaining unit retains the signed memorandum for the duration of the unfavorable information file. **(T-1)**

4.2.8. The gaining commander must personally interview newly assigned SF personnel in accordance with DoDM 5210.42. **(T-0)** Prior to assigning duties requiring firearms, gaining commanders will discuss:

4.2.8.1. The increased responsibility required of personnel who carry firearms and protect Department of Defense resources and personnel. **(T-0)**

4.2.8.2. The high standards required of SF personnel. **(T-0)**

4.2.8.3. The requirement and importance of self and peer reporting on suitability to bear arms in accordance with **paragraph 4.2.5.3** of this instruction. **(T-0)** This can be discussed in a public setting (e.g., Newcomers Brief).

4.2.8.4. Information that affects SF personnel's suitability to bear firearms. **(T-0)** Provide each individual a private setting to discuss issues with the commander that could affect their suitability to bear arms. **(T-0)** This cannot be discussed in a public setting. **(T-0)** This one-on-one discussion must take place before placing the individual on an arming roster. **(T-0)** When electing a third party from the chain of command be present during the discussion, ensure completion of any applicable Privacy Act training. **(T-0)**

4.2.9. Personnel must meet the following criteria, as judged by their assigned commander. **(T-0)** The final decision for suitability rests with the commander.

4.2.9.1. Be dependable, mentally alert, and technically proficient commensurate with their respective U.S. nuclear weapons, Nuclear Command and Control Systems, positive control material and equipment, or special nuclear material duty requirements. **(T-0)**

4.2.9.2. Be flexible in adjusting to changes in the working environment, including ability to work in adverse or emergency situations. **(T-0)**

4.2.9.3. Have good social adjustment, emotional stability, personal integrity, sound judgment, and allegiance to the United States. **(T-0)**

4.2.9.4. Have a positive attitude toward U.S. nuclear weapons, Nuclear Command and Control Systems, positive control material and equipment, and special nuclear material duty. **(T-0)** Commanders can refer to DoDM 5210.42_DAFMAN 13-501 for assistance in making suitability determinations.

4.3. Security Forces Retention Standards.

4.3.1. Commanders will withdraw the 31P or 3P0 AFSC if they lose confidence in the individual's reliability in accordance with DoDI 5210.42. **(T-0)** Commanders will withdraw the 31P or 3P0 AFSC if the individual fails to meet the retention criteria as outlined in the DAFOCD or DAFECD. **(T-1)**

4.3.2. As applicable, commanders may contact their servicing Staff Judge Advocate Office, MTF/CC/DIRECTOR, or MPF before withdrawing the AFSC to discuss the merits of the specific case.

4.4. Nuclear Surety Duties.

4.4.1. Security Force personnel must be authorized to bear firearms in order to perform duties as part of a two-person concept team or to perform nuclear security duties requiring PRAP certification. **(T-1)** Refer to DAFI 36-2646 for further description of these duties.

4.4.2. Training. SF Commanders, or the Chief of SF (United States Air Forces in Europe Munition Support Squadron), are responsible for ensuring completion of specific training for assigned SF personnel. Administer training in accordance with DAFI 36-2646. **(T-1)**

Chapter 5

ARMING AND USE OF FORCE SUITABILITY FACTORS

5.1. Refer to suitability factors outlined in DoDM 5210. 42_DAFMAN 13-501, *Nuclear Weapons Personnel Reliability Program,* Appendix 4, Enclosure 3. These suitability factors establish a baseline to assist commanders in determining the suitability of personnel to perform AUoF duties. These suitability factors must be continually evaluated by commanders when considering whether to authorize an individual to bear firearms. Whether a person has one or more of these factors is determined by the person's commander, in consultation with the appropriate supporting agency (i.e. unit security assistant, treating provider, etc..). There is no specific number of these factors that suggests a personality or behavioral disorder. Rather it is the extent to which the noted factor(s) differ from what is considered "normal" that makes a factor important. Finally, it is the duration (how long the factor has been present and or how long it lasts), frequency (how often it happens), and intensity (strength) of the factor that suggest the severity of the personality or behavioral trait.

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Director of Logistics, Engineering and Force Protection Division

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 U.S.C. § 552a, *Records maintained on individuals* (Privacy Act of 1974,)

5 U.S.C. § 8401 (*Definitions*)

10 U.S.C. § 9013 (*Secretary of the Air Force*)

18 U.S.C. § 921 (*Definitions*)

18 U.S.C. § 922 (*Unlawful Acts*)

18 U.S.C. § 922(g)(9) (*The Lautenberg Amendment*)

18 U.S.C. § 926B (*Carrying of Concealed Firearms by Qualified Law Enforcement Officers*)

18 U.S.C. § 926C (*Carrying of Concealed Firearms by Qualified Retired Law Enforcement Officers*)

18 U.S.C. § 1001 (*Statements or Entries Generally)*

Graham v. Connor, 490 U.S. 386 (1989)

Air Force General Officer Handbook, 1 June 2023

Public Law 104-91, *Health Insurance Portability and Accountability Act of 1996 (HIPAA)*DoDI 5210.42, *DoD Nuclear Weapons Personnel Reliability Assurance*, 27 April 2016

DoDI 5525.14, *DoD Law Enforcement Officers (LEOs) Flying Armed,* 22 March 2011

DoDI 6400.06, *DoD Coordinated Community Response to Domestic Abuse Involving DoD Military and Certain Affiliated Personnel,* 15 December 2021

DoDI 6490.04, *Mental Health Evaluations of Members of the Military Services,* 4 March 2013

DoDI 6490.08, *Command Notification Requirements to Dispel Stigma in Providing Mental Health Care to Service Members*, 06 September 2023

DoDI 6495.02, Vol 1 *Sexual Assault Prevention and Response (SAPR) Program Procedures*, 28 March 2013, Incorporating Change 8, July 26, 2014

DoDD 3000.03E, *DoD Executive Agent for Non-Lethal Weapons (NLW), and NLW Policy*, 25 April 2013

DoDD 5210.56, *Arming and Use of Force*, 18 November 2016

DoDM 5100.76_DAFMAN 31-101 V2, *Physical Security of Sensitive Conventional Arms, Ammunition & Explosives*, 20 February 2020

DoDM 5200.02, *Procedures of the DoD Personnel Security Program (PSP),* 03 April 2017

DoDM 5210.42, *Nuclear Weapons Personnel Reliability Program (PRP)*, 13 January 2015

DoDM 5210.42_ DAFMAN 13-501, *Nuclear Weapons Personnel Reliability Program (PRP),* 03 April 2024

DoDM 6025.18, *Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DOD Health Care Programs*, 13 March 2019

DAFI 31-103, *Law Enforcement Program,* 1 May 2024

DAFI 36-2608, *Military Personnel Records System,* 16 April 2021

DAFI 36-2646, *Security Forces Training and Standardization Evaluation Programs,* 19 December 2019

DAFMAN 31-129, *USAF Small Arms and Light Weapons Handling Procedures,* 02 January 2020

DAFMAN 71-102, *Air Force Criminal Indexing*, 21 July 2020

DAFMAN 90-161, *Publishing Processes and Procedures*, 18 October 2023

DAFMAN 31-115 V1, *Department of the Air Force Corrections System,* 22 December 2020

AFI 1-1, *Air Force Standards*, 18 August 2023

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 36-2654, *Combat Arms Program*, 16 April 2020

AFMAN 10-206, *Operational Reporting (OPREP),* 18 June 2018

AFMAN 36-2100, *Military Utilization and Classification*, 07 April 2021

AFOSIMAN 71-113, *Weapons, Arming, Search and Seizure, Apprehension, Arrest, and Use of Force*

Joint Publication 3-84, *Legal Support,* 02 August 2016

CJCSI 3121.01B, *Standing Rules of Engagement / Standing Rules for the Use of Force for US Forces*, 13 June 2005

Prescribed Forms

DAF Form 523, *USAF Authorization to Bear Firearms*

DAF Form 590, *Withdraw or Reinstatement of Authority to Bear Arms Firearms*

DAF Form 629, Small Arms Hand Receipt

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

AF Form 422, *Notification of Air Force Member's Qualification Status*

AF Form 469, *Duty Limiting Condition Report*

AF Form 688A, *Security Forces Investigator Credential*

AF Form 688B, *Security Forces Detective Credential*

AF Form 1288, *Application for Ready Reserve Assignment*

Abbreviations and Acronyms

AF—Air Force

(Added-USAFE-AFAFRICA) AFAFRICOM—United States African Command

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFOSI—Air Force Office of Special Investigations

AFPD—Air Force Policy Directive

AFR—Air Force Reserve

AFSC—Air Force Specialty Code

AFSFC—Air Force Security Forces Center

AMRO—Airman Medical Readiness Optimization

ANG—Air National Guard

ASIMS—Aeromedical Services Information Management System

AUoF—Arming and Use of Force

AVB—Active Vehicle Barrier

CJCSI—Chairman of the Joint Chiefs of Staff Instruction

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manuals

DAFECD—Department of the Air Force Enlisted Classification Directory

DAFOCD—Department of the Air Force Officer Classification Directory

DCIO—Defense Criminal Investigation Organization

DCS—Deputy Chief of Staff

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DoDM—Department of Defense Manual

DRU—Direct Reporting Unit

FLDCOM—Field Command

HAF—Headquarters Air Force

HIPAA—Health Insurance Portability and Accountability Act

IPO—Installation Protection Office

LEO—Law Enforcement Officer

LEOSA—Law Enforcement Officers Safety Act

MAJCOM—Major Command

MPF—Military Personnel Flight

MTF—Medical Treatment Facility

NAF—Numbered Air Force

OPR—Office of Primary Responsibility

OPREP—Operational Reporting

PAW—Permanent Authority to Withdrawal

PRAP—Personnel Reliability Assurance Program

PRP—Personnel Reliability Program

POF—Privately Owned Firearms

RegAF—Regular Air Force

SEAD—Security Executive Agent Directive

SecAF—Secretary of the Air Force

SF—Security Forces

SJA—Staff Judge Advocate

SMARTNet—Security Management & Automated Resource Tracking Network

UCMJ—Uniform Code of Military Justice

UoF—Use of Force

US—United States

U.S.C.—United States Code

(Added-USAFE-AFAFRICA) USEUCOM—United States European Command

USSF—United States Space Force

Office Symbols

AF/A3OO—AF Operations Group

AF/A4—Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection

AF/A4S—Director of Security Forces

AF/A4SO—Directorate of Security Forces, Operations Division

AFSFC/FP—Air Force Security Forces Center Force Protection Planning and Integration

AFSFC/FPI—Air Force Security Forces Center Integrated Defense/Police Services

(Added-USAFE-AFAFRICA) USAFE-AFAFRICA/A4S—Security Forces Division, United States Air Forces in Europe – Air Forces Africa

(Added-USAFE-AFAFRICA) USAFE-AFAFRICA/CC—Commander, United States Air Forces in Europe – Air Forces Africa

Terms

Armed—A person equipped with a firearm that has a live round of ammunition in a magazine inserted into the firearm, chamber, or cylinder. See DoDD 5210.56.

Carry—The carrying of a weapon, loaded and ready for employment, on one's person. Authority to carry may include the retention, transport, and storage to and from the workplace to domicile.

Concealed Weapon—A firearm that is carried by a person and intentionally covered or kept from sight (for instance, a handgun not clearly visible on the outermost garment worn).

Deadly Force—Force that is likely to cause, or that a person knows or should know would create a substantial risk of causing, death or serious bodily harm or injury. See DoDD 5210.56.

Firearm—Defined in 18 U.S.C. § 921 (*Definitions)*

Force—Physical presence, action, or exercise of strength to compel another to act or refrain from certain behavior.

Functional Manager—The office of primary responsibility for a particular Air Force specialty. Examples: United States Air Force/A4S, for security forces; United States Air Force/A4C for civil engineers; AF/A1 for personnel, and education and training specialists.

Grievous Bodily Harm /Serious Bodily Harm—Includes fractured or dislocated bones, deep cuts, torn parts of the body, serious damage to the internal organs, and life-threatening injuries but does not include minor injuries solely such as a black eye or bloody nose.

Hostile Act—An attack or other use of force against the U.S., U.S. forces or other

designated persons or property. It also includes force used directly to preclude or impede the mission and/or duties of U.S. forces, including the recovery of U.S. personnel or vital U.S. Government property.

Hostile Intent—The threat of imminent use of force against the U.S., U.S. forces or other designated persons or property. It also includes the threat of force to preclude or impede the mission and/or duties of U.S. forces, including the recovery of U.S. personnel or vital U.S. Government property.

Imminent Threat—The determination of whether the danger of death or serious bodily harm is imminent will be based on an assessment of all facts and circumstances known to DoD forces at the time and may be made at any level. Imminent does not necessarily mean immediate or instantaneous. Individuals with the capability to inflict death or serious bodily harm and who demonstrate intent to do so may be considered an imminent threat.

Installation Commander—The individual responsible for all operations performed by an installation.

Installation Personnel Reliability Assurance Program Monitor—An individual in the military grade of E-5 or above or a civilian in the equivalent grade who is specifically appointed to

administer and conduct oversight of the day-to-day functions of the personnel reliability program at Department of Defense Components and installations.

Lautenberg Amendment—Amendment to the Gun Control Act of 1968 that makes it a crime for any person who has been convicted of a misdemeanor crime of domestic violence to possess a firearm (as implemented in DoDI 6400.06).

Law Enforcement Officer—Defined in 5 U.S.C. § 8401 (*Definitions)*, 18 U.S.C. § 926B, and 18 U.S.C. § 926C.

Less-lethal Force—The degree of force used that is unlikely to cause death or serious physical injury. As used in this instruction, less lethal force is synonymous with less than deadly, non-lethal, and less than lethal force.

National Critical Infrastructure—For the purpose of DoD operations, President-designated public utilities, or similar critical infrastructure, vital to public health or safety, the damage to which the President has determined could create an imminent threat of death or serious bodily harm or injury.

Non-lethal Weapons—Weapons, devices, and munitions that are explicitly designed and primarily employed to incapacitate targeted personnel or materiel immediately, while minimizing fatalities, permanent injury to personnel, and undesired damage to property in the target area or environment. Non-lethal weapons are intended to have reversible effects on the personnel and materiel.

Objective Reasonableness—As described in the U.S. Supreme Court case of *Graham v. Connor*, 490 U.S. 386, that conduct that satisfies the Fourth Amendment to the U.S. Constitution standard of "objective reasonableness" for assessing the use of force.

Officer—Any officer, noncommissioned officer, Airman, civilian or contract employee performing security, law and order, military police, or guard duties under Air Force control.

Officer Created Jeopardy—Situations where officers needlessly put themselves in a position where they must use deadly force to protect themselves.

Probable Cause (Reasonable Grounds)—Determination required by Fourth Amendment of the Constitution and UCMJ in the general context of apprehension, search, or seizure that reasonable grounds exist to believe that a specific offense has occurred, that a certain person has committed a specific offense or is engaged in committing an offense, or that a person, property, or evidence sought is located in a particular place or on a particular person.

Reasonable Suspicion—An objectively justifiable belief, that is based upon specific facts or circumstances, and that justifies stopping and sometimes searching (as by frisking) a person thought to be involved in criminal activity at the time. The Supreme Court case Terry v Ohio (1968) held that police may briefly detain a person who they reasonably suspect is involved in criminal activity. **Note**: A police officer stopping a person must be able to point to specific facts or circumstances even though the level of suspicion need not rise to that of the belief that is supported by probable cause. A reasonable suspicion is more than a hunch.

Rules of Engagement—Directives issued by competent military authority that delineate the circumstances and limitations under which US forces will initiate and/or continue combat engagement with other forces encountered. See also law of war in Joint Publication 3-84.

Screening—A review of medical and dental records, personnel records, personnel security investigation, other pertinent documents or information, and a personal interview for the purpose of validating an individual's reliability to be considered for the personnel reliability program.

Servicing Armory—The armory that is used for day-to-day arming for duty purposes.

Sexual Assault—Intentional sexual contact characterized by the use of force, threats, intimidation, or abuse of authority, or when the victim does not or cannot consent. The term includes a broad category of sexual offenses consisting of the following specific UCMJ offenses; rape, sexual assault, aggravated sexual contact, abusive sexual contact, forcible sodomy (forced oral or anal sex), or attempts to commit these offenses.

Subject Action(s)—Security Forces' perception of the subject's capability, opportunity, and intent indicate what degree of force is required, if any, by Security Forces personnel to achieve his/her objective. As in the elements of reasonableness, subject actions cannot be defined mechanically but can be structured into behavioral categories to promote understanding of the concept.

Unauthorized Firearms Discharge—Intentionally or accidentally discharging a firearm without authorization.

Unit Commander—An officer who commands a designated unit assigned, attached, or tenant to an installation and whom administrative orders identify as a "commander."

Attachment 2

FIREARM DISCHARGE / NON-LETHAL WEAPON EMPLOYMENT REPORT

A2.1. Installation commanders must use the following report when providing follow-up information on firearms discharge or Non-lethal Weapon Employment report as specified by this publication and DAFMAN 31-129 to include non-lethal weapons.

Figure A2.1. Background Information on Subject.

1. FULL NAME AND GRADE
2. DoD ID NUMBER OR SOCIAL SECURITY ACCOUNT NUMBER (EMPLOYEE NUMBER WHEN SUBJECT DOES NOT HAVE A SOCIAL SECURITY ACCOUNT NUMBER)
3. DATE AND PLACE OF BIRTH
4. MAJOR COMMAND/SOA OF ASSIGNMENT
5. UNIT AND INSTALLATION OF ASSIGNMENT
6. DATE ASSIGNED PRESENT UNIT
7. PRIMARY AIR FORCE SPECIALTY CODE

INCIDENT SUMMARY
1. DATE AND TIME OF INCIDENT
2. TYPE AND SERIAL NUMBER OF FIREARM
3. TYPE OF INJURY OR PROPERTY DAMAGE
4. PUBLICITY RECEIVED
5. BRIEF SUMMARY OF INCIDENT

LESSONS LEARNED

Submitted by: The Defense Force Commander or squadron commander of the individual who discharged the firearm will normally initiate the report.

Operation/Event Name: The formal name of the military operation or a brief description of the event; for example, RESTORE HOPE in Somalia from August to December 1993, or Use of Deadly Force, Andrews AFB, MD, 1990.

Keywords: Critical terms specific enough to facilitate a subject matter automated search. Example: Law enforcement, use of deadly force.

Title: Name of the incident. Example: Death of a Security Forces Airman/Robbery.

Observation: A precise, factual description of the entire incident in narrative format based on the preliminary information available. This section may include background information on the subject.

Discussion: A critical review of the procedures used, and actions accomplished during the incident. **Note:** This may be based on preliminary information available, pending results of a

law enforcement investigation or use of force review board if applicable. The intent is to highlight potential problem areas so readers can prevent similar mistakes or to prompt a review of appropriate policy or procedures.

Lessons Learned: A synopsis of a "better way" or a "best business practice" that may be more effective in the future. **Note:** If there is law enforcement investigation or a use of force review board is being recommended, this report may simply state that fact.

Recommended Action: Use this section to outline suggested review actions by higher headquarters.

Office of Primary Responsibility Comments: This is an open area designed for the Office of Primary Responsibility to add any additional appropriate comments.

Attachment 3

EXAMPLE MEMORANDUM TO GAINING COMMANDER

Figure A3.1. Example Memorandum to Gaining Commander.

DD MMM YY

MEMORANDUM FOR XX UNIT/CC FROM: XX UNIT/CC

SUBJECT: Permanent Change of Station – (Rank, Last, First, MI)

1. (Rank, Last, First, MI) is a projected gain to your unit. (Rank, Last Name) has an active Unfavorable Information File or has arming use of force suitability factors in question. (Rank, Last Name) is / is not currently suitable to bear firearms and perform Security Force duties in accordance with DAFI 31-117, *Arming and Use of Force*.

2. This memorandum confirms information between losing and gaining commander was appropriately shared and discussed before deciding to allow the Airman to permanently change station in accordance with DAFI 31-117. This memorandum will be kept on file with the gaining unit for the duration of the unfavorable information file.

3. [Applicable to Air National Guard units] While assigned to the XX Squadron, (Rank, Last Name) has carried out his/her duties in a manner consistent with the reliability standards required of Security Forces personnel. If this changes, I will personally contact you before allowing (Rank, Last Name) to permanently change station to your unit.

JOHN A. SMITH, Rank, USAF
Commander, XXst Squadron (Losing Commander)

As the gaining commander, I do / do not accept the Airman into my unit.
[If applicable] Because I did not accept the individual, please contact your local MPF and the assignments manager at AFPC to cancel the Airman's assignment in accordance with DAFI 31-117. [If applicable] Because I accepted the individual with the unfavorable information file, the gaining unit keeps this letter on file for the duration of the unfavorable information file.

JOE B. JONES, Rank, USAF
Commander, XXst Squadron (Gaining Commander)

Attachment 4

EXTENDED ABSENCE QUESTIONNAIRE FOR SECURITY FORCES PERSONNEL

A4.1. Commander will interview the individual per Chapter 4. Prior to the interview, the individual will complete the questionnaire at **Table A4.1** and submit the questionnaire to the commander. **(T-1)**

Table A4.1. Extended Absence Questionnaire for Security Forces Personnel.

AUTHORITY: 10 U.S.C. § 9013 (*Secretary of the Air Force*), DoDD 5210.56, Section 3, EO 9397 (SSN), as amended. See **Chapter 4** in this instruction.

PURPOSE: Identify issues that affect authority and qualification to bear arms; the ability to deploy and readiness; and ensures public safety.

ROUTINE USE: The commander requires completion of this questionnaire for unit personnel prior to authorizing them to bear arms if they have had an extended absence from duty as defined by this Instruction. The information may be disclosed to the following (list not all inclusive): the responsible installation, group and unit commander, appropriate medical provider, and the designated reliability/readiness monitor if deemed appropriate by the commander. At a minimum, maintain a copy of this questionnaire for the duration of the Airman's tour of duty or permanent change of station. **PRIVACY ACT OF 1974 APPLIES**.

DISCLOSURE: Refusal to answer questions or provide information may result in the Airman being placed on the Temporary Arming Withdrawal roster as deemed by the arming authority. Answer all questions to the best of your knowledge. If you answer YES to a question, please provide a description of the event and relevant details.

Note: Only include information that has not been previously recorded and occurred during the extended absence from Security Forces duty.

SYSTEM OF RECORD NOTICE: F031 AF SF B

Name, Unit, and Office Symbol:	**Yes**	**No**
1. Have you received any non-MTF care (medical, dental, mental health, etc.), to include telehealth since you last performed armed security forces duty? This does not include care received for a Restricted report of sexual assault with SAPR domestic abuse with the Family Advocacy Program (FAP).		
2. Have you taken any medications not as directed or not in compliance with instruction labels or instruction from a medical provider?		

3. Are you taking, or do you plan to take any medication, prescription, or non—prescription, which may cause drowsiness or impair judgment?		
4. Is there any additional information the commander should be made aware of prior to authorizing you to bear arms (e.g., personal issues, civilian arrests, or financial difficulties)?		
5. If you are above the pay grade of E-6, on active duty, or in an active status in a Reserve Component, have you been convicted of crime by any court, which has not already been reported? (See also AFI 1-1, *Air Force Standards*)		
6. Is there anything that would prevent you from safely performing armed duty?		
7. Do you need assistance with access to medical care, legal assistance, family programs, resiliency programs, or other installation resources?		
DESCRIPTION:		

Attachment 5

POST FIREARM DISCHARGE AND/OR USE OF FORCE PROCEDURES CHECKLIST

Figure A5.1. Post Firearm Discharge and/or Use of Force Procedures Checklist.

Reference **Chapter 2** of this publication for appropriate uses of this checklist, which should be taken after the threat is neutralized and the incident is terminated.

Installation Actions (as applicable):

1. Provide summary of the incident.

2. Gather the identity and status of all personnel involved.

3. Identify injured or deceased persons including an assessment of the extent of their injuries and medical assistance.

4. Identify any witnesses to the incident and obtain written statements via Statement of Suspect/Witness/Complainant (AF IMT 1168).

5. Document the operational activity in which the individual(s) who discharged the firearm or NLW, or otherwise used force, was engaged.

6. Document the type of firearm or NLW, the number of shots fired, and the current location of all weapons used in the incident.

7. Review DAFI 31-103, *Law Enforcement Program,* to determine if scene is properly secured.

8. Secure and safeguard all involved firearms or NLWs as evidence, including Security Forces firearms or NLWs.

9. Secure and safeguard all technology-influenced evidence (LMR transmissions, CCTV, Body Cam, Dash Cam video footage, telephones).

10. If the incident occurred at an off-base location (e.g., leased facility, off-base housing area), civil law enforcement will likely lead the investigation. Did Air Force Office of Special Investigations collaborate with civilian law enforcement investigators to collect evidence and statements for the use of force review board?

11. If outside AF jurisdiction, did Security Forces notify appropriate jurisdictional authorities?

12. Contact appropriate agencies/organizations (Mental Health, Chaplain, other available agencies such as local police departments/Sheriffs) to enable counseling to eligible personnel involved.

13. Once the investigation is complete, did the affected unit commander consider removing all personnel involved from the scene?

14. For personnel who discharged a firearm, was their authorization to bear firearms temporarily withdrawn until completion of the investigation?

15. In order to maintain installation security, did the affected unit commander identify and fill any critical personnel or operational gaps left from removing involved personnel?

16. Request alcohol/drug toxicology screening conducted on personnel who discharged their firearm or NLW, or otherwise used force, in accordance with proper law and regulations (consult servicing Staff Judge Advocate Office).

17. When legal counsel is requested refer uniform members to the Area Defense Counsel and refer civilians and contractors to private defense counsel (retained at their own expense).

18. If DAF Police Officers/Guards were involved, were they made aware of their rights under the Weingarten Rights (consult with servicing Staff Judge Advocate Office)?

19. If the incident involved an injury, fatality, or possible publicity, coordinate with the Command Post to make required notifications?

20. Was Public Affairs notified?

21. Was Alert Photo notified?

22. Were the immediate family of the responding Security Forces personnel referred for counseling (Mental Health/Chaplain) as needed/requested? **Note:** Prior to releasing information, ensure that it is releasable within current regulations and law.

23. Did affected unit commander consider conducting an emergency commander's call to address the situation?

24. If investigation determined persons involved used a firearm or NLW, or otherwise used force negligently or had a training deficiency, were corrective actions (including applicable administrative or disciplinary steps) taken?

25. If investigation or other conclusive evidence show persons involved discharged their firearm or NLW, or otherwise used force according to established policy, were they returned to duty immediately?

26. Did the Security Forces Commander continue to provide updated information to AF/A4S through their MAJCOM Security Forces, until the situation concluded?

27. Did affected unit complete unit-level follow-up report in After Action Report format and

submit to the Air Force Security Forces Center within 30 calendar days?

Figure 5.2. HAF and Air Force Installation and Mission Support Center Actions:

1. Did Air Force Security Forces Center contact MAJCOM Security Forces for any additional information, to include the names of the individual(s) involved, to allow for actions affecting training records?

2. Did Air Force Security Forces Center post lessons learned to their SMARTNet?

HAF Actions:

1. Did the AF/A4S recommend the need for a use of force review board to the affected Wing CC and MAJCOM CC?

2. Did AF/A4S assist in appointing a disinterested Security Forces Airman in the grade of O-6 or GS-15 as the Use of Force Review Board President?

3. Based on the use of force review board findings and recommendations, were required updates to training made or identified changes to policy recommended?

4. After the Air Force Security Forces Center posts lessons learned on SMARTNet, did the AF/A4S send a message to MAJCOM Security Forces for follow-on distribution to Security Forces Commanders and SFMs directing them to review the lessons learned?

Attachment 6 (Added-USAFE-AFAFRICA)

CLARIFICATION: RULES FOR USE OF FORCES VS. RULES OF ENGAGEMENT IN AIR FORCE CONTEXTS.

Figure A6.1. (Added-USAFE-AFAFRICA) RULES FOR USE OF FORCES VS. RULES OF ENGAGEMENT IN AIR FORCE CONTEXTS

1. PURPOSE. This attachment clarifies the distinct applications of Rules for the Use of Force (RUF) and Rules of Engagement (ROE) within Air Force installation security contexts, particularly concerning Security Forces (SF) operations and Counter-small Unmanned Aircraft Systems (C-sUAS) incidents. It highlights the primary governing framework for various scenarios.

2. DEFINITIONS.

2.1. Rules for the Use of Force (RUF). Directives governing the application of force by Department of the Air Force personnel during law enforcement, security, and protective service operations. RUF are primarily concerned with maintaining domestic order, enforcing laws, and protecting life and property within a sovereign territory or jurisdictional area.

2.2. Rules of Engagement (ROE). Directives issued by competent military authority that delineate the circumstances and limitations under which United States forces will initiate and/or continue combat engagement with other forces encountered. ROE are primarily concerned with achieving military objectives in a conflict environment and self-defense against external, hostile threats, in accordance with the Law of Armed Conflict (LOAC).

3. APPLICATION OF RULES FOR THE USE OF FORCE (RUF).

3.1. General Applicability. RUF govern the actions of Air Force personnel, including Security Forces (SF), when performing duties consistent with law enforcement, security, or protective service operations within a non-combat environment. This includes, but is not limited to, routine base patrolling, traffic enforcement, criminal investigations, suspect apprehension, and response to domestic disturbances or internal security incidents. specific RUF for a given Area of Responsibility (AOR) or mission must be defined and approved in coordination with the Staff Judge Advocate (SJA) and higher headquarters.

3.2. Security Forces (SF) Operations. Security Forces personnel typically operate under RUF when performing their internal law enforcement and security duties on a military installation in a non-combat zone. Their authority stems from the Uniform Code of Military Justice (UCMJ) and applicable federal and state laws. Their actions are guided by principles of: * Necessity: Force is used only when necessary to accomplish a legitimate law enforcement objective. * Proportionality: The level of force used is proportionate to the threat or resistance encountered. * Reasonableness: The force used is objectively reasonable in light of the facts and circumstances confronting the officer, without regard to their underlying intent or motivation. * De-escalation: Emphasis on using techniques to reduce the need for force when feasible.

4. APPLICATION OF RULES OF ENGAGEMENT (ROE).

4.1. General Applicability. ROE apply to Air Force personnel when operating in a combat environment, a declared area of hostilities, or when responding to an external, hostile threat against U.S. forces, assets, or interests. These rules define when, where, how, and against whom force may be applied to achieve military objectives or for self-defense.

4.2. Installation Defense. When an installation is under direct external attack, or in declared combat zones/areas of responsibility, all military personnel engaged in the defense of the installation, including Security Forces acting in a defensive capacity, will operate under established ROE. This shifts their primary role from internal law enforcement to defense against an external enemy.

4.3. ROE Development and Approval. Specific ROE for a given Area of Responsibility (AOR) or mission must be defined and approved in coordination with the Staff Judge Advocate (SJA) and higher headquarters.

5. DISTINCTION AND TRANSITION.

5.1. Core Differences. The fundamental distinction between RUF and ROE lies in their primary context, governing legal frameworks, and the nature of the threat addressed:

Feature	Rules for the Use of Force (RUF)	Rules of Engagement (ROE)
Primary Context	Domestic law enforcement, internal security, installation policing	Military operations, armed conflict, external defense
Governing Law	Domestic (e.g., UCMJ, U.S. Constitution), agency policy	International Humanitarian Law (LOAC), military law, mission directives
Threat Focus	Individual criminal acts, internal security breaches, resistance	Enemy combatants, hostile forces, external aggression
Primary Goal	Enforce law, maintain order, protect life/property, apprehend suspects	Achieve military objectives, defend against external threats, protect forces

5.2. Dynamic Nature. It is critical to understand that a situation governed by RUF can rapidly transition to one governed by ROE, especially when an internal security incident escalates to an external, hostile act, or vice versa. Commanders must ensure personnel are trained to recognize and adapt to such transitions.

6. C-sUAS INCIDENTS: APPLICATION OF RUF vs. ROE.

The proliferation and evolving capabilities of small Unmanned Aircraft Systems (sUAS) present a complex and dynamic threat landscape. The classification of a sUAS incident and the appropriate response (RUF or ROE) is highly dependent on a rapid and accurate assessment of the **intent** of the sUAS, the **context** of its operation, and the **imminence** and **nature** of the threat it poses.

6.1. C-sUAS Incident Under RUF.* Scenario: A sUAS is detected flying over an installation in a non-combat zone, and its assessment indicates it is likely a security violation, a nuisance, unauthorized surveillance, or a potential criminal act (e.g., unintentional trespass, photography of restricted areas, delivery of illicit items) without clear, immediate hostile intent or weaponized capability. These sUAS are generally considered an intrusion to be mitigated through law enforcement or security protocols. * **Threat Assessment (RUF):** Factors indicating a RUF assessment include: * Lack of identifiable weaponized payload or hostile modifications. * Flight profile consistent with recreational use, surveillance, or delivery without overt aggression. * No established intelligence indicating specific hostile groups are operating sUAS in the area with aggressive intent. * The sUAS is primarily a breach of airspace regulations or a nuisance. * **Response (RUF):** Actions taken will be governed by RUF, prioritizing non-lethal and proportional measures. These may include: * Soft-Kill Capabilities: Electronic warfare (e.g., jamming, spoofing, cyber takeovers), non-kinetic nets, directed energy systems (e.g., high-power microwave) designed to disable sUAS electronics. * **Physical Interdiction:** Directed net-gun systems or other methods to capture/down the sUAS without destructive force. * **Containment:** Preventing the sUAS from reaching critical assets or sensitive areas. * **Reporting and Investigation:** Tracking the sUAS, identifying and apprehending the operator, and collecting evidence for potential prosecution under UCMJ or federal/local law. * **Limited Kinetic Force:** Limited Kinetic Force: Lethal force against the operator of the sUAS is generally prohibited unless the sUAS or the operator controlling the sUAS demonstrates an immediate and clear threat of death or serious bodily injury to personnel or critical infrastructure (e.g., flying directly into an engine intake, delivering an incendiary device, or otherwise becoming _a direct means of inflicting grave harm) AND less-lethal options are unfeasible, ineffective, or unavailable in the given timeframe. This provision does not abrogate the requirement to coordinate with host nation authorities, as required. Such instances require stringent justification and post-incident review.

6.2. C-sUAS Incident Under ROE Scenario: A sUAS is detected operating in a combat zone, or a sUAS operating over an installation is assessed as demonstrating hostile intent, executing a hostile act, or is part of a coordinated attack by an adversarial force. This includes weaponized sUAS delivering payloads, conducting aggressive reconnaissance in support of an imminent attack, or participating in a swarm attack. **Threat Assessment:** Factors indicating an ROE assessment include Identification of weaponized payload or clear hostile modifications. Aggressive flight profile, including evasive maneuvers, direct approach towards personnel or critical assets indicating intent to crash or deliver payload. Intelligence indicating the sUAS originates from a known adversarial group or state actor or is part of a broader hostile campaign. Confirmed participation in a coordinated attack. Threatening electromagnetic signatures. **Response:** Actions taken will be governed by ROE, which may authorize the use of kinetic force (e.g., small arms fire, anti-sUAS systems, air defense systems) to neutralize the sUAS. The primary goal is to counter the immediate military threat to personnel, equipment, or the mission, in accordance with the Law of Armed Conflict (LOAC). The principles of distinction, proportionality (in attack), and military necessity, as defined by the specific ROE for the AOR, would apply. Force may be applied against the sUAS and its operator if they are determined to be combatants or hostile actors.

6.3. Assessment and Transition. Rapid Assessment: The rapid and accurate assessment of a sUAS incident's nature) is paramount. Commanders, Security Forces personnel, Command

Post, Intelligence elements, and C-sUAS operators must leverage all available information (e.g., sensor data, intelligence reports, visual confirmation) to determine the intent and threat level. **Decision Authority:** Clear lines of authority for C-sUAS engagement must be established, outlining who has the authority to authorize a RUF or ROE response based on the threat assessment. **Escalation Matrix:** Installations must develop and maintain a comprehensive sUAS response plan, including an escalation matrix or decision tree that guides personnel through the threat assessment process and outlines authorized response options from detection through neutralization, considering potential collateral damage. * **Training and Drills:** Regular training, exercises, and drills are essential to ensure personnel can rapidly identify sUAS threats, accurately assess intent, and execute appropriate RUF or ROE responses under pressure. **Post-Engagement Analysis:** All C-sUAS incidents, particularly those involving engagement, require thorough post-incident analysis, reporting, evidence collection, and lessons learned to refine tactics, techniques, and procedures (TTPs) and update response protocols.